

THE COMMON USE TEST AND THE QUESTION OF CONSTITUTIONAL
COVERAGE

*Joseph Blocher**

ABSTRACT

A basic function of constitutional doctrine is to establish the boundaries of judicially enforceable constitutional rights—what many call coverage. This Article provides a thorough account of the evolution, status, and shortcomings of one particularly significant coverage doctrine: the “common use” test that courts have used to determine the scope of “Arms” under the Second Amendment. In a series of cases, the Court has indicated that weapons “in common use” are covered by the Second Amendment, whereas weapons that are “dangerous and unusual” may be prohibited. The difficulty comes in determining what this rule actually means and why it should be considered binding.

The common use test emerged from a stray line of apparent dicta in *United States v. Miller*, a case that made no pretense of originalist analysis, was probably incorrect as to the bits of history it did reference, and might well have meant “common” in an entirely different sense than “popular.” Having savaged *Miller* as unoriginalist and “virtually unreasoned,” *District of Columbia v. Heller* nonetheless seized on *Miller*’s reference to “common use” and repurposed it as a coverage test for “Arms,” adding a variety of non-originalist textual embellishments along the way. Following *Heller*, lower courts dutifully tried to invoke this standard while noting its unworkability (what is “common”? what is “use?” what about “dangerous” and “unusual?”), which they could generally sidestep by assuming common use and handling cases based on means-end scrutiny.

By putatively rejecting means-end scrutiny and replacing it with a focus on “plain text” and historical analogy, *Bruen* made it harder to justify modern regulations in modern terms. And yet many judges—including a plurality of the current Justices—continue using the distinctly contemporary common use test as a way to circumvent *Bruen*’s otherwise exclusive focus on “plain text” and history. The common use test, of course, is neither of those things. Indeed, some advocates and judges have even begun to treat the common use test as a rule of absolute immunity that would render any weapon, no matter how dangerous,

* Lanty L. Smith ’67 Professor of Law, Duke Law School. For helpful discussions and suggestions, thanks to Jamie Boyle, Jacob Charles, Mark Frassetto, Josh Hochman, Kevin Schascheck, Maggie Lemos, Darrell Miller, Eric Ruben, Reva Siegel, and Andrew Willinger. For excellent research help, thanks to Branden Adams, Drew Adams, Alison Riddoch, and Andrew Touma.

impervious to regulation so long as it meets the as-yet-undefined standard of “in common use.” This interpretive breakdown means that the test has become like a lever disconnected from the machinery it is meant to operate: more of an ornament than a doctrine for implementing constitutional meaning.

The common use test’s shortcomings are all the more alarming because—as this Article was in production—the Court granted cert in two cases involving assault weapons, meaning that the test will be thoroughly briefed and argued to the Justices for the first time. This gives the Justices an opportunity to revisit a coverage test that has become unmoored from constitutional text, history, workability, and democratic imperatives, and to reorient the doctrine around the Second Amendment’s central values of self-defense and public safety. Unless and until the Court treats questions of Second Amendment coverage with the same seriousness and attention as it does coverage in other areas of constitutional rights law, the common use test will continue to provide erratic and unprincipled guidance about the boundaries of the right to keep and bear arms.

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INTRODUCTION

A basic function of constitutional doctrine is to establish the boundaries of judicially enforceable constitutional rights: the threshold conditions that a complaining party must demonstrate to secure judicial review of a claim that a governmental action violates the Constitution. With varying degrees of explicitness and doctrinal structure, this question of scope—which many call *coverage*—is endemic to constitutional rights law and scholarship.¹ Not all speech counts as “speech” within the ambit of the First Amendment.² Not every police interaction is subject to the Fourth Amendment’s warrant requirement.³ Not all restrictions of “property” trigger the Fifth Amendment’s Takings requirement.⁴

The boundaries in each of these areas are obviously shaped by a complex mix of doctrinal, social, and political forces and are closely bound up with the role and power of courts.⁵ Only if a claim falls within a juridically covered

¹ See, e.g., Frederick Schauer, *What is Speech? The Question of Coverage*, in THE OXFORD HANDBOOK OF FREEDOM OF SPEECH 158, 163–164 (Adrienne Stone & Frederick Schauer eds., 2021); *infra* note 2 and sources cited therein.

² On the scope and justifications of free speech coverage, Robert Post, *Recuperating First Amendment Doctrine*, 47 STAN. L. REV. 1249 (1995); Frederick Schauer, *The Boundaries of the First Amendment: A Preliminary Exploration of Constitutional Salience*, 117 HARV. L. REV. 1765 (2004); Amanda Shanor, *First Amendment Coverage*, 93 N.Y.U. L. REV. 318 (2018).

³ On the scope justifications of the warrant requirement, see Orin S. Kerr, *An Equilibrium-Adjustment Theory of the Fourth Amendment*, 125 HARV. L. REV. 476 (2011); David Gray, *Fourth Amendment Remedies as Rights: The Warrant Requirement*, 96 B.U. L. REV. 425 (2016); Richard M. Re, *Fourth Amendment Fairness*, 116 MICH. L. REV. 1409, 1430 (2018).

⁴ On the scope of regulatory takings, see Maureen (Molly) E. Brady, *Penn Central Squared: What the Many Factors of Murr v. Wisconsin Mean for Property Federalism*, 166 U. PA. L. REV. 53 (2017); Richard Epstein, *Disappointed Expectations: How the Supreme Court Failed to Clean up Takings Law in Murr v. Wisconsin*, 11 N.Y.U. J.L. & LIBERTY 151 (2017); Carol M. Rose, Mahon Reconstructed: Why the Taking Issue Is Still a Muddle, 57 S. CAL. L. REV. 561 (1984).

⁵ To be clear, claims of coverage (including gun rights coverage) are often recognized in constitutional culture long before they are manifested in judicial doctrine. See, e.g., JOSEPH BLOCHER & DARRELL A.H. MILLER, THE POSITIVE SECOND AMENDMENT: RIGHTS, REGULATION, AND THE FUTURE OF HELLER (2018); Reva B. Siegel, *Dead or Alive: Originalism as Popular Constitutionalism in Heller*, 122 HARV. L. REV. 191 (2008) [hereinafter Siegel, *Dead or Alive*]. But the question of coverage for purposes of adjudication is nonetheless crucial, especially given

category, such as speech, property, or arms—the question of *coverage*—will a court go on to evaluate whether the challenged government action is permissible—what is often called the question of *protection*.⁶ In general, constitutional law and scholarship have focused too little attention on the first stage, and in particular on the way in which theoretically incoherent or practically unworkable coverage definitions can undermine the second-stage protection inquiry.

Tests at this second step take many forms, from the tiers of scrutiny⁷ to proportionality⁸ to categorical rules.⁹ In recent years, the Justices have increasingly emphasized protection tests based on history and tradition and reliant on bright-line rules, rather than the transparent means-end analysis associated with the tiers of scrutiny. This ongoing shift in protection analysis has attracted significant scholarly commentary.¹⁰

The move to putatively historical-categorical rules in assessing the constitutionality of government action (i.e., *protection*) is also important because it greatly increases the significance of the *coverage* analysis—that is, the determination of what claims will be subject to this rule-like protection. For example, in *New York State Rifle & Pistol Association v. Bruen*, the majority described the Second Amendment as an “unqualified command”¹¹ and purported to rule out any consideration of means-end scrutiny.¹² To the degree that this is an accurate statement of the doctrine (some judges have treated it as such¹³), the constitutionality of a gun law depends entirely on whether the Second Amendment applies in the first place. Essentially, the coverage and protection inquiries collapse into one another, making it all the more important that the doctrinal rules regarding coverage receive the kind of judicial and

the current Court’s expanding claims of power.

⁶ See, e.g., Mark Tushnet, *The Coverage/Protection Distinction in the Law of Freedom of Speech—an Essay on Meta-Doctrine in Constitutional Law*, 25 WM. & MARY BILL RTS. J. 1073 (2017).

⁷ Calvin Massey, *The New Formalism: Requiem for Tiered Scrutiny?*, 6 PENN. J. OF CON. L. 945 (2004).

⁸ Jamal Greene, *Rights as Trumps?*, 132 HARV. L. REV. 28 (2018); Jud Matthews & Alec Stone Sweet, *All Things in Proportion? American Rights Review and the Problem of Balancing*, 60 EMORY L.J. 797 (2011).

⁹ Joseph Blocher, *Categoricalism and Balancing in First and Second Amendment Analysis*, 84 N.Y.U. L. REV. 375, 422 (2009); Kathleen M. Sullivan, *Post-Liberal Judging: The Roles of Categorization and Balancing*, 63 U. COLO. L. REV. 293 (1992).

¹⁰ Joseph Blocher & Reva B. Siegel, *The Ambitions of History and Tradition in and Beyond the Second Amendment*, U. PA. L. REV. (forthcoming 2026) [hereinafter Blocher & Siegel, *The Ambitions of History and Tradition*]; Clay Calvert & Mary-Rose Papandrea, *The End of Balancing? Text, History & Tradition in First Amendment Speech Cases After Bruen*, 18 DUKE J. OF CONST. L. & PUB. POL. 59, 67-76 (2023); Francesca Procaccini, *The End of Means-Ends Scrutiny*, 75 DUKE L.J. (forthcoming 2025).

¹¹ *New York State Rifle & Pistol Ass’n, Inc. v. Bruen*, 597 U.S. 1, 17 (2022) (quoting *Konigsberg v. State Bar of Cal.*, 366 U.S. 36, 50, n.10 (1961)).

¹² See Blocher & Siegel, *The Ambitions of History and Tradition*, *supra* note 10.

¹³ See *infra* Section IV.C.

scholarly attention that has long been paid to the rules regarding protection. That need is especially urgent as the Justices have increasingly invoked history and tradition not only as a matter of protection, but also as means for determining coverage, such as in the suggestion that all speech is covered except for those categories that have historically been excluded.¹⁴

Thus far, the high water mark for these doctrinal trends in constitutional law has been the Second Amendment—an area that is comparatively unburdened by precedent and thus provides an especially valuable window into the current Justices’ doctrinal preferences.¹⁵ It is precisely in the areas where the Justices are effectively building from scratch that we can most accurately discern the shape their views would take if they were not bound up by complications of precedent, reliance, and so on.

That process is currently underway with a vengeance. The Court’s major decisions in *District of Columbia v. Heller*¹⁶ and *Bruen*¹⁷ answered some high-level questions of coverage, including that the right to keep and bear arms encompasses some guns kept for private purposes (*Heller*), and that this right extends outside the home (*Bruen*). In doing so, *Heller* and *Bruen* also indicated that the Second Amendment’s boundaries are set by reference to constitutional text and history.

But that relatively limited guidance raises a host of important questions, which have divided courts and scholars with regard to both outcome and method. For example, *Heller* indicates that felons and the mentally ill can be constitutionally disarmed.¹⁸ Do they fall outside “the People” to whom the Second Amendment refers, or are they covered by the right but nonetheless subject to prohibition?¹⁹ In *Wolford v. Lopez*, the Court suggested that “the People” encompasses “all members of the political community,” which would seem to include not only felons and the mentally ill but children and people currently incarcerated.²⁰ *Heller* says that guns can be forbidden in “sensitive places,”²¹ but the Second Amendment makes no mention of place. What is the basis for setting the locational boundaries of the right?

¹⁴ See, e.g., *Brown v. Ent. Merch. Ass’n*, 564 U.S. 786, 792-95 (2011); *United States v. Stevens*, 559 U.S. 460, 470-71 (2010); *Vidal v. Elster*, 144 S. Ct. 1507, 1513 (2024) (plurality opinion). But see Genevieve Lakier, *The Invention of Low-Value Speech*, 128 HARV. L. REV. 1 (2015) (questioning the historical accuracy of this account); *Vidal*, 144 S. Ct. at 1524 (2024) (Barrett, J., concurring in part) (“In my view, the Court’s laser-like focus on the history of this single restriction misses the forest for the trees.”).

¹⁵ Blocher & Siegel, *The Ambitions of History and Tradition*, *supra* note 10.

¹⁶ 554 U.S. 570 (2008).

¹⁷ 597 U.S. 281 (2022).

¹⁸ *Heller*, 554 U.S. at 626-27.

¹⁹ See generally Jacob D. Charles, *Defeasible Second Amendment Rights: Conceptualizing Gun Laws That Dispossess Prohibited Persons*, 83 L. & CONTEMP. PROBS. 53 (2020) (exploring this distinction).

²⁰ No. 24-1046, 2026 WL 1825723, at *6 (U.S. June 25, 2026) (quoting *Heller*, 554 U.S. at 580).

²¹ *Heller*, 554 U.S. at 626-27.

In other areas of constitutional law, doctrines setting the scope of a right run into trouble when they become disconnected from the text, history, and principles that the right protects.²² A rule that tried to separate covered from uncovered speech without a meaningful grounding in the values of the First Amendment—truth, democracy, autonomy, and so on—would be “a mere ornament, not connected with the mechanism at all.”²³ Likewise, Second Amendment coverage doctrines must reflect the values underlying the right to keep and bear arms, including what *Heller* identified as the “core lawful purpose of self-defense”²⁴ and what *United States v. Rahimi* called “the principles that underpin our regulatory tradition.”²⁵

This Article assesses these broad questions of constitutional coverage under the Second Amendment by providing a thorough account of the evolution, status, and shortcomings of one particularly significant coverage doctrine: the “common use” test that courts have used to determine the scope of “Arms.”²⁶ Although the test has taken different forms since it was invoked in *Heller*, the basic notion is that the “Arms” covered by the Second Amendment are those that are “in common use” today—as distinct, generally, from those that are “dangerous and unusual.”²⁷ Weapons that satisfy this test are subject to Second Amendment protection analysis, which in the years after *Heller* typically meant that laws regulating them were subject to some kind of means-end scrutiny.²⁸ In the wake of *Bruen*, that protection test has morphed into a historical-analogical approach that some courts treat as categorical, meaning that weapons in common use cannot be banned regardless of how dangerous they are.²⁹

Analysis of coverage tests is important as a matter of constitutional law and theory, and analysis of the common use test is particularly crucial as a matter of Second Amendment law. Caselaw and scholarship in the aftermath of *Heller* and *Bruen* have explored the broad methodological challenges that those cases raise,³⁰

²² See, e.g., Post, *supra* note 2, at 1252; Joseph Blocher, Jacob D. Charles, & Darrell A.H. Miller, “Map Is Not The Territory”: *The Theory and Future of Sensitive Places Doctrine*, 98 N.Y.U. L. REV. ONLINE 438 (2023).

²³ Cf. Post, *supra* note 2, at 1249 (“We as it were turned on a knob which looked as if it could be used to turn on some part of the machine, but it was a mere ornament, not connected with the mechanism at all.”) (quoting LUDWIG WITTGENSTEIN, *PHILOSOPHICAL INNOVATIONS* § 271 (G.E.M. Anscombe trans. 1958)).

²⁴ *Heller*, 554 U.S. at 630 (noting the “core lawful purpose of self-defense”).

²⁵ *United States v. Rahimi*, 602 U.S. 680, 681 (2024) (emphasis added).

²⁶ As discussed in more detail below, in the wake of *Bruen*, some courts have treated common use as a matter of protection rather than coverage. See *infra* Sections IV.B & IV.C.

²⁷ See *infra* Section I.B.

²⁸ See *infra* Part III.

²⁹ See *infra* Section IV.C.

³⁰ For a sampling of perspectives on *Bruen*, see Jacob D. Charles, *The Dead Hand of a Silent Past: Bruen, Gun Rights, and the Shackles of History*, 73 DUKE L.J. 67 (2023); Brannon P. Denning & Glenn H. Reynolds, *Retconning Heller: Five Takes on New York State Rifle & Pistol Association, Inc. v. Bruen*, 65 WM. & MARY L. REV. 79 (2023); George A. Mocsary, *In Denial About the Obvious:*

as well as the who³¹ and the where³² of Second Amendment rights. By contrast, comparatively little direct attention has been paid to the matter of *what*: the weapons that the Second Amendment covers.³³ That relative dearth of attention is especially striking when compared to the vast literature and doctrine addressing the equivalent question for the First Amendment: not who has free speech rights or where they can be exercised, but what constitutes “speech” for constitutional purposes.³⁴ To the degree that courts and scholars have normatively evaluated the common use test at all, they have tended to focus on its workability, with some celebrating it as “clear”³⁵ and “straightforward,”³⁶ but most calling it “circular,”³⁷ “hopelessly subjective,”³⁸ or otherwise problematic.³⁹

The need to evaluate the common use test is especially urgent because the Supreme Court is about to engage with it again. As the 2024 Term came to a close, the Court declined to grant cert in a Fourth Circuit case upholding Maryland’s prohibition on assault weapons⁴⁰ and a First Circuit case upholding Rhode Island’s ban on high capacity magazines.⁴¹ But Justices Samuel Alito and Neil Gorsuch indicated that they would have granted cert in both cases, and

Upending the Rhetoric of the Modern Second Amendment, 2024 CATO SUP. CT. REV. 201.

³¹ See, e.g., C. Kevin Marshall, *Why Can’t Martha Stewart Have A Gun?*, 32 HARV. J.L. & PUB. POL’Y 695 (2009); Dru Stevenson, *In Defense of Felon-in-Possession Laws*, 43 CARDOZO L. REV. 1573 (2022); Zach Sherwood, Note, *Time to Reload: The Harms of the Federal Felon-in-Possession Ban in a Post-Heller World*, 70 DUKE L.J. 1429 (2021).

³² See, e.g., Carina Bentata Gryting & Mark Anthony Frassetto, *NYSRPA v. Bruen and the Future of the Sensitive Places Doctrine: Rejecting the Ahistorical Government Security Approach*, 63 B.C.L. REV. E-SUPPLEMENT I-60 (2022); David B. Kopel & Joseph G.S. Greenlee, *The “Sensitive Places” Doctrine: Locational Limits on the Right to Bear Arms*, 13 CHARLESTON L. REV. 205 (2018); Darrell A.H. Miller, *Constitutional Conflict and Sensitive Places*, 28 WM. & MARY BILL RTS. J. 459 (2019).

³³ Andrew Nell, “Common Use, Common Tradition: A Positive Law Framework for *Heller*’s Common Use Test” (June 16, 2025), available at <https://ssrn.com/abstract=5297526> (“[C]ommon use is itself a woefully undertheorized test in need of refinement.”).

³⁴ See, e.g., *supra* notes 1-2 and sources cited therein.

³⁵ Mark W. Smith, *Dangerous, but Not Unusual: Mistakes Commonly Made by Courts in Post-Bruen Litigation*, 22 GEO. J.L. & PUB. POL’Y 599, 601 (2024) [hereinafter Smith, *Dangerous, but Not Unusual*].

³⁶ See Joel L. Alicea, *Bruen Was Right*, 174 U. PA. L. REV. (forthcoming 2025) (manuscript at 13).

³⁷ See, e.g., *District of Columbia v. Heller*, 554 U.S. 570, 721 (2008) (Breyer, J., dissenting).

³⁸ Nell, *supra* note 33.

³⁹ See, e.g., *Bevis v. City of Naperville*, 85 F.4th 1175, 1198 (7th Cir. 2023) (“[W]e do not find [the common-use] factor to be very helpful.”); *Del. State Sportsmen’s Ass’n v. Del. Dep’t of Safety & Homeland Sec.*, 108 F.4th 194, 213 (3d Cir. 2024) (Roth, J., concurring); *Kolbe v. Hogan*, 849 F.3d 114, 141–142 (4th Cir. 2017) (King, J.) (en banc); *Friedman v. City of Highland Park*, 784 F.3d 406, 409 (7th Cir. 2015) (“[I]t would be absurd to say that the reason why a particular weapon can be banned is that there is a statute banning it, so that it isn’t commonly owned.”).

⁴⁰ *Snope v. Brown*, 145 S. Ct. 1534 (2025).

⁴¹ *Ocean State Tactical, LLC v. Rhode Island*, No. 24-131, 2025 WL 1549866, at *1 (U.S. June 2, 2025).

Justice Clarence Thomas issued a lengthy dissent from denial of cert in the assault weapons case, as he has done in prior class-of-arms cases.⁴² Justice Brett Kavanaugh also issued a “statement” saying, among other things, that the Court should revisit the assault weapons issue “in the next Term or two.”⁴³ Justices Thomas and Kavanaugh both invoked the common use test and suggested strongly that they would find that the restricted items are indeed in common use—as then-Judge Kavanaugh concluded in a prominent case before he was elevated to the Court.⁴⁴ Justice Thomas has noted the need for guidance on various doctrinal elements of the common use test.⁴⁵ And then, as this Article was in edits, the Court granted certiorari in *Grant v. Higgins*⁴⁶ and *Viramontes v. Cook County*,⁴⁷ which include assault weapon restrictions in Connecticut and Illinois, respectively. The common use test is about to be fully briefed and argued to the Justices for the first time, giving them a chance to provide the “guidance” Justice Thomas invoked.

This Article argues that such efforts at rehabilitation are unlikely to succeed. The common use test is *ipse dixit*, unmoored from the Second Amendment’s text, history, or principles. Remarkably, it leads to obvious malfunctions within every post-*Heller* iteration of Second Amendment doctrine, from pre-*Bruen* tiered scrutiny to post-*Bruen* originalism-by-analogy. In other words, no matter which type of test is used to determine the extent of the Second Amendment’s protection, the common use test fails to provide rational guidance about its coverage. The Court should replace it with a test that meaningfully protects the individual right to keep and bear arms and the corresponding authority of communities to defend themselves from gun violence.

⁴² *Snope v. Brown*, 145 S. Ct. 1534, 1535 (2025) (Thomas, J., dissenting from denial of certiorari). See also *Friedman v. City of Highland Park*, 577 U.S. 1039, 1039 (2015) (Thomas, J., dissenting from denial of certiorari); *Harrel v. Raoul*, 144 S. Ct. 2491 (2024) (Thomas, J., respecting the denial of certiorari).

⁴³ *Snope*, 145 S. Ct. at 1534 (Kavanaugh, J., respecting the denial of certiorari).

⁴⁴ As a judge on the D.C. Circuit, Kavanaugh voted to strike down the District’s assault weapons ban, finding it inconsistent with the Second Amendment’s text, history, and tradition. *Heller v. District of Columbia (Heller II)*, 670 F.3d 1244, 1269 (D.C. Cir. 2011) (Kavanaugh, J., dissenting). That dissent helped galvanize the adoption of a historical approach to the Second Amendment. Blocher & Siegel, *The Ambitions of History and Tradition*, *supra* note 10. It was also seen by many as an important step toward constitutional coverage and protection of assault weapons. Mark W. Smith, “Assault Weapon” Bans: Unconstitutional Laws for A Made-Up Category of Firearms, 43 HARV. J.L. & PUB. POL’Y 357, 361 (2020) [hereinafter Smith, “Assault Weapon” Bans] (“[W]hy are we talking today about the U.S. Supreme Court and the rights of individuals to own ordinary firearms with certain features that some political partisans wrongly label ‘assault weapons’? Well, it’s because of Judge Kavanaugh’s elevation to the U.S. Supreme Court.”).

⁴⁵ *Harrel v. Raoul*, 144 S. Ct. 2491, 2492 (2024) (statement of Thomas, J.) (arguing that *Heller* and *Caetano*’s “minimal guidance is far from a comprehensive framework for evaluating restrictions on types of weapons, and it leaves open essential questions such as what makes a weapon ‘bearable,’ ‘dangerous,’ or ‘unusual’”).

⁴⁶ No. 25-566, 2026 WL 1871312 (U.S. June 30, 2026).

⁴⁷ No. 25-238, 2026 WL 1871322 (U.S. June 30, 2026).

Exploring the common use test's development and genealogy provides an opportunity to identify various metrics by which it—and perhaps other coverage tests—can be evaluated. Taking cues from the Court's own statements, the analysis here identifies four: the test might be mandated a matter of constitutional *text* (as *Heller* seems to suggest),⁴⁸ it might be implied by *history* (as *Miller* has been read to suggest),⁴⁹ it might be a *workable* way to resolve cases (as post-*Heller* cases tried to do).⁵⁰ or it might be a good way to protect the constitutional *principles* underlying the Second Amendment (as the Conclusion discusses).⁵¹ Each of the first three of these potential desiderata corresponds to an era in the development of the common use test, and this Article addresses them in turn.

Part I begins with *text*. The common use test emerged not from the plain text of the Second Amendment, but from the Court's decision in *Heller*. As part of its exceptionally broad and in many ways distinctly non-originalist textual analysis of "Arms,"⁵² *Heller* limited the Amendment's scope to the subset of arms "in common use,"⁵³ thereby inaugurating what has become the primary test of weapons coverage. *Heller* then fused "common use" to a separate set of common law principles regarding the regulation of "dangerous" and "unusual" weapons. It outfitted the emergent common use test with a variety of other accoutrements having no clear textual support, including that covered arms are those in common use "for lawful purposes like self-defense" rather than "weapons not typically possessed by law-abiding citizens for lawful purposes."⁵⁴ Whatever might be said in favor of the common use test, it is hard to justify as a product of the Second Amendment's unadorned text.

Part II turns to *history*, since the common use test is embedded in the Court's resolutely historicist Second Amendment doctrine and has itself often been treated as an originalist test.⁵⁵ But the origins of "common use" in the firearms context go back only as far as a throwaway line of apparent dicta in 1939's *United States v. Miller*,⁵⁶ an opinion that *Heller* itself derided as discussing "*none* of the history of the Second Amendment" and being "uncontested and virtually

⁴⁸ See *infra* Part I.

⁴⁹ See *infra* Part II.

⁵⁰ See *infra* Part III.

⁵¹ See *infra* Conclusion.

⁵² See *infra* Section I.A.

⁵³ See *infra* Section I.B.

⁵⁴ See *infra* Section I.C.

⁵⁵ See, e.g., *Bruen*, 697 U.S. at 21 (stating that the common use test is "fairly supported by the historical tradition of prohibiting the carrying of dangerous and unusual weapons") (internal quotations omitted); *Rahimi*, 602 U.S. at 735 (Kavanaugh, J., concurring) (similar); Nicholas Griepsma, *Concealed Carry through Common Use: Extending Heller's Constitutional Construction*, 85 GEO. WASH. L. REV. 284, 284 (2017); Jamie G. McWilliam, *The Relevance of "In Common Use" After Bruen*, 37 HARV. J.L. & PUB. POL'Y PER CURIAM 1, 2 (2023); Mark Tushnet, *Permissible Gun Regulations after Heller: Speculations about Method and Outcomes*, 56 UCLA L. REV. 1425, 1439 (2009).

⁵⁶ 307 U.S. 174 (1939).

unreasoned.”⁵⁷ To the degree that *Miller* does make a claim about the past—that “men were expected to appear bearing arms supplied by themselves and of the kind *in common use at the time*”⁵⁸—it is unsubstantiated and debatable at best.⁵⁹ Indeed, although “common use” has universally been treated as referring to popularity, there is a plausible argument that *Miller* meant “common” in the sense of public or shared, as arms often were and are in military settings.⁶⁰ History, too, fails to support popular use as a principle of Second Amendment coverage.

Courts in the aftermath of *Heller* needed some kind of coverage test for “Arms,” and in the absence of anything better they seized on variations of “common use.” This raises a third possible justification for the test, which Part III discusses. Regardless of its historical or doctrinal lineage, the test might be a *workable* approach to resolving cases, given that judges must make decisions about which cases fall outside a right’s scope. But here, too, the common use test has failed on conceptual and practical grounds. What does it mean for a weapon to be “common” and why should that matter?⁶¹ What does it mean to “use” a weapon, and what kinds of use count in the constitutional calculus?⁶² Does *Heller*’s reference to dangerousness have any meaning, or do “common” and “unusual” collapse into one another and erase any consideration of a weapon’s dangerousness?⁶³

These problems have become even more notable in the aftermath of *Bruen*, which Part IV explores. Many have used the common use test as a presentist end-around to avoid *Bruen*’s purported focus on history, treating it as a rule of decision that exempts modern weapons from the same historical-analogical limits that apply to modern gun regulations.⁶⁴ Additionally, among judges and scholars who have tried to retrofit the common use test into *Bruen*, there is a deep division about whether it is an element of *Bruen*’s “plain text” inquiry (which many treat as *Bruen*’s coverage test) or rather of *Bruen*’s historical-analogical analysis (*Bruen*’s protection test).⁶⁵ This debate not only illustrates broader and problematic efforts to separate textual and historical analysis, but also has outcome-determinative results, given that the burden of proof shifts to the government at the second step of *Bruen*. Indeed, some judges, scholars, and advocates have come to treat “common use” as a bright line rule of protection that prohibits the restriction of any weapon that meets its malleable standard,

⁵⁷ *Heller*, 554 U.S. at 624; *id.* at 624 n.24. See *infra* Section II.A.

⁵⁸ *Miller*, 374 U.S. at 179 (emphasis added).

⁵⁹ See *infra* Section II.B.

⁶⁰ See *infra* Section II.C.

⁶¹ See *infra* Section III.A.

⁶² See *infra* Section III.B.

⁶³ See *infra* Section III.C.

⁶⁴ See *infra* Section IV.A.

⁶⁵ See *infra* Section IV.B.

regardless of how deadly and dangerous it might be.⁶⁶ The common use test has thus become a powerful tool for some judges to endorse contemporary gun rights while proclaiming fealty to history, and to strike down democratically enacted gun regulation while invoking populist rhetoric about the people's choices.

Doctrinal tinkering is unlikely to save a test that—despite its widespread invocation—fails on nearly every metric by which a constitutional doctrine can be judged, including those that the Court itself has prioritized. The common use test lacks a foundation in constitutional text or history, has proven unworkable in practice, and has little meaningful connection to the values of the right that it is meant to protect, including what *Heller* identifies as the “core lawful purpose of self-defense.”⁶⁷

When the Justices do hear a class-of-arms case, whether it is in the “next Term or two”⁶⁸ or sometime later, they should reorient Second Amendment coverage doctrine around the values and principles that underlie gun rights and regulation. That would be in keeping with *Rahimi*'s description of *Bruen*'s test as being a search for “the principles that underpin our regulatory tradition.”⁶⁹ Otherwise, the common use test will continue to provide erratic and unprincipled guidance about the Amendment's boundaries.

I. TEXT AS COVERAGE: *HELLER*'S QUESTIONABLE APPROACH TO “ARMS”

Inasmuch as constitutional cases are rooted in the text of the Constitution, coverage tests might be—to varying degrees, based on the text's clarity and specificity—dictated or at least shaped by the relevant text. The Seventh Amendment, for example, preserves a right to a jury trial in certain civil cases.⁷⁰ A person not involved in civil litigation or seeking something other than a jury trial is simply operating outside of the Amendment's scope as a textual matter.

Of course, the meaning of these textually specified elements will be debatable, and there is reason to doubt that the unadorned text of the Constitution can precisely define the scope of rights like Due Process, Equal Protection, and free speech. In the particular context of the Second Amendment, text and history have often been used in tandem or interchangeably, which makes it especially hard to maintain a bright line between the text-as-coverage approach described in this Part and the history-as-coverage approach described in the following Part.⁷¹ The goal instead is to isolate the

⁶⁶ See *infra* Section IV.C.

⁶⁷ *Heller*, 554 U.S. at 630 (noting the “core lawful purpose of self-defense”).

⁶⁸ *Snope*, 154 S. Ct. at 1536 (Kavanaugh, J., respecting the denial of certiorari).

⁶⁹ 602 U.S. at 681 (emphasis added).

⁷⁰ U.S. CONST. amend. VII. For exploration of Seventh Amendment doctrine and its potential connection to the Second, see Darrell A. H. Miller, *Text, History, and Tradition: What the Seventh Amendment Can Teach Us About the Second*, 122 YALE L.J. 852 (2013).

⁷¹ See Eugene Volokh, *Textualism and* *District of Columbia v. Heller*, 37 HARV. J. L. & PUB.

degree to which text, history, and other considerations might support the common use test. And because *Bruen* suggests that the “plain text” of the Second Amendment provides its own coverage test⁷²—a notion seemingly confirmed in *Wolford v. Lopez*⁷³—it is important to consider whether the common use test is indeed a product of the Amendment’s text.

That means starting with *District of Columbia v. Heller*, which first articulated the test in connection with its textual analysis of the word “Arms.” In *Heller*, the Court struck down a municipal regulation that amounted to a near-total prohibition on the private possession of handguns.⁷⁴ The central question in *Heller* was whether the Second Amendment is limited to people, activities, and arms having a connection to the organized militia or whether it encompasses private purposes like self-defense.⁷⁵ But as the specific law being challenged was aimed at handguns, Justice Scalia’s majority opinion went on to consider whether they are among the “Arms” covered by the Second Amendment by analyzing the understanding of the word “Arms” in the Founding Era.⁷⁶ In doing so, *Heller* casually endorsed a capacious definition of “Arms” while ignoring conflicting evidence. The Court then adopted the common use test as a limiting principle of scope, relying on not dictionaries or other textual sources but the Court’s prior decision in *United States v. Miller*,⁷⁷ which Part II describes in more detail. Finally, the majority added further extratextual elaborations like “dangerous,” “unusual,” and “lawful purposes” with supposed common law origins. Given that later courts and commentators have treated *Heller* as having announced “common use” as a doctrinal rule of decision (something that is anything but clear⁷⁸), it is important to break down each of these steps. Doing so makes it clear that the common use test cannot justifiably be grounded in the plain text of the Second Amendment.

POL’Y 718, 719 (2010) (“To the extent that you’re going to be a textualist, you ought to be an originalist. You may reject both originalism and textualism, but if you care about textualism, it’s hard to say, ‘We’re going to interpret that text because it was enacted into law by the Framers, but we are going to use modern meanings for words that the Framers never contemplated.’ That would be constitutional law by pun—a strange way of interpreting a legal provision.”).

⁷² See *infra* Section IV.B.

⁷³ No. 24-1046, 2026 WL 1825723, at *9 (U.S. June 25, 2026)

⁷⁴ *Heller*, 554 U.S. at 636.

⁷⁵ *Id.* at 577.

⁷⁶ *Id.* at 581.

⁷⁷ 307 U.S. 174, 178 (1939).

⁷⁸ Oliver Krawczyk & Gilbert Ambler, *Dangerous and Unusual: How Heller’s Abistorical Assumption Violates the Founders’ Original Intent*, 129 DICK. L. REV. 801, 809 (2025) (“[T]he Court has qualified that its current ‘Arms’ pronouncements are not the products of a fully briefed, fully explored historical record, but rather assumptions and interpretations that could benefit from further analysis.”); Jack Thorlin, *Just to Be Safe, Let’s Keep Ignoring What “Arms” Meant in 1791*, 129 DICK. L. REV. 1075, 1079 (2025) (“[T]he majority’s discussion of ‘arms’ was entirely subsidiary to its discussion of ‘militia,’ which it defined as the entire able-bodied male population at the time.”).

A. *Heller Adopts an Expansive and Non-Originalist Definition of “Arms”*

In addressing the question of which “Arms” are covered by the Second Amendment, Justice Scalia began by analogizing to distinctly non-originalist constitutional rights doctrines: “Just as the First Amendment protects modern forms of communications, and the Fourth Amendment applies to modern forms of search, the Second Amendment extends, *prima facie*, to all instruments that constitute bearable arms, even those that were not in existence at the time of the founding.”⁷⁹ Especially at the time of *Heller*, it could hardly be said that these other coverage tests were originalist.⁸⁰ Moreover, no one in *Heller* argued that the Second Amendment covers *no* “modern forms” of weapons—only that it doesn’t cover *all* of them. Likewise, the First Amendment does not cover all “modern forms of communication” or, for that matter, even all forms of *speech*.⁸¹

But rather than even recognizing, let alone attempting, the kind of nuanced coverage tests that apply to the First Amendment, *Heller* simply declared that “[t]he 18th-century meaning [of arms] is no different from the meaning today,” citing old dictionaries that defined arms as “[w]eapons of offence, or armour of defence” or as “any thing that a man wears for his defence, or takes into his hands, or useth in wrath to cast at or strike another.”⁸² This is not how other coverage doctrines work. If the scope of the freedom of speech were defined in the same way, using the same dictionaries, it might cover only “the power of articulate utterance; the power of expressing thoughts by vocal words.”⁸³ This is, to put it mildly, not an accurate or desirable account of the freedom of speech—nor even of the First Amendment coverage decisions recently adopted by the Court’s originalist majority.⁸⁴

Two things stand out about this passage from *Heller*, which sets up the Court’s later adoption of the common use test. The first is that its approach to

⁷⁹ *Heller*, 554 U.S. at 582.

⁸⁰ Calvert & Papandrea, *supra* note 10, at 67-76.

⁸¹ Frederick Schauer, *Speech and “Speech”—Obscenity and “Obscenity”: An Exercise in the Interpretation of Constitutional Language*, 67 GEO. L.J. 899-933 (1979).

⁸² 554 U.S. at 581 (quoting SAMUEL JOHNSON, *DICTIONARY OF THE ENGLISH LANGUAGE* (1773) and TIMOTHY CUNNINGHAM, *A NEW AND COMPLETE LAW DICTIONARY* (1771)). *Heller* limits its *prima facie* definition to “all instruments that constitute *bearable* arms,” *id.* at 582, though the Johnson definition, at least, does not seem to have a principle of bearability built into it. Why not all keepable arms? Even in the space between the dictionary definitions and the doctrinal rule, *Heller* makes sub silentio choices that might be defensible but are not determined by the text.

⁸³ JOHNSON, *supra* note 77.

⁸⁴ See, e.g., *Brown v. Entertainment Merchants Association*, 564 U.S. 786 (2011) (holding violent video games are entitled to First Amendment protection); *United States v. Stevens*, 559 U.S. 460 (2010) (finding depictions of animal cruelty are not categorically unprotected by the First Amendment); *Citizens United v. Federal Election Commission*, 558 U.S. 310 (2010) (holding corporate campaign contributions fall within the scope of First Amendment protection).

interpreting “Arms” was remarkably casual, lacking the rigor one would hope for or expect from a coverage test. The fact that *Heller* was written by Justice Scalia and heavily cites historical sources has led many to celebrate it as a paragon of original public meaning and vindication of constitutional text.⁸⁵ But the majority simply disregarded substantial evidence that “Arms” referred primarily to military weapons,⁸⁶ and indeed even the dictionaries cited by the majority provide many alternative definitions of “arms” that focus specifically on their use in war, not for private purposes.⁸⁷ The wholesale adoption of two dictionary definitions is a far cry from the kind of doctrinal elaboration that other rights receive and the Second Amendment deserves.

The second observation is that it is astonishingly broad to treat all “[w]eapons of offence, or armour of defence” as falling within the scope of the Second Amendment. No other constitutional rights doctrine has such a simplistic or broad approach, and indeed it is hard to imagine any weapon that would *fail* to clear this initial threshold.⁸⁸ Even handheld nuclear devices fit

⁸⁵ See, e.g., Randy Barnett, *News Flash: The Constitution Means What It Says*, WALL ST. J. VIA THE CATO INST. (June 27, 2008), <https://www.cato.org/publications/commentary/news-flash-constitution-means-what-it-says> (calling *Heller* “the finest example of what is now called ‘original public meaning’ jurisprudence ever adopted by the Supreme Court”).

⁸⁶ *Heller*, 554 U.S. at 646-57 (Stevens, J., dissenting) (arguing that “bear arms” in the Founding era had an idiomatic meaning of “wage war”); Dennis Baron, *Corpus Evidence Illuminates the Meaning of Bear Arms*, 46 HASTINGS CONST. L.Q. 509 (2019) (showing, based on corpus linguistic analysis, that in the Founding era “bear arms” was most commonly used in a military context).

⁸⁷ Johnson’s other four definitions of “Arms” do not support *Heller*’s reading: “2) A state of hostility; 3) War in general; 4) Action; the act of taking arms; 5) The ensigns armorial of a family.” JOHNSON, *supra* note 77. The Cunningham dictionary provides the same definition for “arms” as it does for “armour,” and, although the majority accurately quotes the first line of the lengthy definition, much of the rest of it is very clearly military. CUNNINGHAM, *supra* note 77. Cunningham is, moreover, a specialized legal dictionary, which would seem to reduce its utility for *Heller*’s original *public* meaning inquiry: “In interpreting this text, we are guided by the principle that the Constitution was written to be understood by the voters; its words and phrases were used in their normal and ordinary as distinguished from technical meaning.” 554 U.S. at 576 (quotation cleaned up and citation omitted).

Webster, which the majority cites elsewhere, cites a version of the Cunningham definition fourth, with other definitions being clearly military:

- 1) Weapons of offense, or armor for defense and protection of the body.
- 2) War; hostility.
- 3) The ensigns armorial of a family; consisting of figures and colors borne in shields, banners, etc., as marks of dignity and distinction, and descending from father to son.
- 4) In law, *arms* are any thing which a man takes in his hand in anger, to strike or assault another.

NOAH WEBSTER’S AMERICAN DICTIONARY OF THE ENGLISH LANGUAGE (1828).

⁸⁸ One example could be *accoutrements* like high-capacity magazines, since they are not themselves “[w]eapons of offense.” But in cases involving such magazines, advocates of a broad right to keep and bear arms tend to pivot and disregard *Heller*’s definition, instead invoking functional concerns to bring ammunition within the Second Amendment’s scope. *Duncan v.*

comfortably within the test as stated.⁸⁹ As discussed in Part III, in the decade after *Heller*, courts applying the now-defunct two-part framework were able to avoid such results by assuming constitutional coverage but upholding gun regulations under some form of means-end scrutiny.⁹⁰ But now that *Bruen* has described that two-part approach as having “one step too many” and—at least in some hands—collapsed the inquiry solely into one of coverage,⁹¹ *Heller*’s purported definition of “Arms” threatens absurd consequences. These consequences are all the more concerning given that this definition is far from a meaningful interpretation of the underlying constitutional text.

B. *Heller* Repurposes Miller’s “Common Use” Language as a Limit on Coverage

Having adopted this broad *prima facie* approach to the Second Amendment’s textual domain, the Court crucially recognized that “the right secured by the Second Amendment is not unlimited.”⁹² Without a clear textual basis, it then proceeded to trim the Amendment’s coverage by enumerating various exclusions, most notably in the “exceptions paragraph,” which became the foundation for much post-*Heller* jurisprudence:

[N]othing in our opinion should be taken to cast doubt on longstanding prohibitions on the possession of firearms by felons and the mentally ill, or laws forbidding the carrying of firearms in sensitive places such as schools and government buildings, or laws imposing conditions and qualifications on the commercial sale of arms.⁹³

Most courts in the aftermath of *Heller* treated this as a list of categorical

Bonta, 133 F.4th 852, 893 (9th Cir. 2025) (Bumatay, J., dissenting). The Conclusion of this Article argues that this functional approach—focusing on the relevance of an instrument for self-defense—is actually the *correct* approach. But it is inconsistent to make that move when it serves to expand the right while simultaneously invoking “plain text” so as to rule out functional considerations that support gun regulation.

and then rule out functional considerations for regulation by invoking “plain text.”

⁸⁹ Darrell A. H. Miller & Jennifer Tucker, *Common Use, Lineage, and Lethality*, 55 U.C. DAVIS L. REV. 2495, 2498 (2022) (“[N]o one really believes that. Not even Justice Scalia believes that. There are numerous modern weapons that ‘constitute bearable arms’ that are categorically outside the Second Amendment’s coverage—no matter what ‘bearable arms’ literally means. Let’s start with bearable arms of catastrophic lethality—vials of weaponized smallpox or VX nerve agent, for example.”).

⁹⁰ See *infra* Part II; Cody Jacobs, *End the Popularity Contest: A Proposal for Second Amendment “Type of Weapon” Analysis*, 83 TENN. L. REV. 231, 234 (2015) (“Indeed, lower courts have already been shirking the common use test rather than following it to its logical—and disturbing—conclusions that lead to both over-protecting and under-protecting Second Amendment rights.”).

⁹¹ See *infra* Section IV.C (discussing treatment of common use as an absolute protection).

⁹² 554 U.S. at 626.

⁹³ *Id.* at 626-27.

exclusions—that is, an elaboration of the Amendment’s coverage.⁹⁴

The Court then turned to its prior decision in *United States v. Miller* for a principle limiting the incredibly broad putatively textual definition of “Arms” it had just articulated.⁹⁵ *Miller*, the Court’s most substantive engagement with the Second Amendment for most of the 20th Century, struck down a challenge to a prohibition on private ownership of single-barreled shotguns because private ownership of such weapons did not have a reasonable relationship to the preservation or efficiency of a well-regulated militia.⁹⁶ As the following Part shows, *Miller* was an unusual choice for this limiting role for many reasons, including that its reasoning is not originalist, its unsupported historical claims are dubious at best, and it might well have meant something else entirely by “common use.” But *Heller*’s invocation of *Miller* is nonetheless worth quoting at length, because it, rather than the text of the Second Amendment, has served as the basis of the common use test:

We may as well consider at this point (for we will have to consider eventually) what types of weapons *Miller* permits. Read in isolation, *Miller*’s phrase “part of ordinary military equipment” could mean that only those weapons useful in warfare are protected. That would be a startling reading of the opinion, since it would mean that the National Firearms Act’s restrictions on machineguns (not challenged in *Miller*) might be unconstitutional, machineguns being useful in warfare in 1939. We think that *Miller*’s “ordinary military equipment” language must be read in tandem with what comes after: “[O]rdinarily when called for [militia] service [able-bodied] men were expected to appear bearing arms supplied by themselves and of the kind in common use at the time.” The traditional militia was formed from a pool of men bringing arms “in common use at the time” for lawful purposes like self-defense Indeed, that is precisely the way in which the Second Amendment’s operative clause furthers the purpose announced in its preface. We therefore read *Miller* to say only that the Second Amendment does not protect those weapons not typically possessed by law-abiding citizens

⁹⁴ Carlton F.W. Larson, *Four Exceptions in Search of a Theory*: District of Columbia v. Heller and Judicial Ipse Dixit, 60 HASTINGS L.J. 1371, 1372 (2009) (“For all practical purposes, these [exceptions] have been decided . . . in favor of constitutionality.”); Eric Ruben & Joseph Blocher, *From Theory to Doctrine: An Empirical Analysis of the Right to Keep and Bear Arms After Heller*, 67 DUKE L.J. 1433, 1488 (2018) (“Courts considering a majority of the challenges in our study (60 percent) explicitly cited those paragraphs . . .”). For a thoughtful argument that these exceptions should be considered as an element of protection rather than coverage, see Kevin Schascheck, *Second Amendment Exceptions*, 93 TENN L. REV. __ (forthcoming 2026)

⁹⁵ 307 U.S. 174, 178 (1939).

⁹⁶ *Id.* at 177.

for lawful purposes, such as short-barreled shotguns.⁹⁷ As with its the definition of “Arms,” this discussion was not central to the Court’s holding in *Heller*,⁹⁸ which makes it all the more notable that post-*Heller* and post-*Bruen* cases and commentary have treated the “common use” test as a precedential rule of decision that lower courts are bound to respect.

Indeed, *Heller* itself does not necessarily treat common use as a standalone test derived from *Miller*. After all, the majority said: “We therefore read *Miller* to say *only* that the Second Amendment does not protect those weapons not typically possessed by law-abiding citizens for lawful purposes, such as short-barreled shotguns.”⁹⁹ Even on its own terms, this does not mean that all weapons “typically possessed by law-abiding citizens” *are* covered by the Second Amendment—only that those which are *not* “typically possessed by law-abiding citizens” are *not* covered. There is nothing illogical or even difficult about such a principle. Short-barreled shotguns might be unprotected because they are not typically possessed by law-abiding citizens for lawful purposes, while other weapons are not protected for other reasons—including, for example, that they are extremely dangerous. In this way, even *Heller* does not regard *Miller* as conclusively expounding the scope of the Second Amendment. While elsewhere, the *Heller* Court describes *Miller* as recognizing that “the Second Amendment *extends only* to certain types of weapons,” that is merely a statement confirming that the scope of the Amendment is not unlimited.¹⁰⁰ It is not a statement that all weapons in common use fall under the scope of the Second Amendment, nor a conferral of total immunity from regulation, as some advocates and apparently some Justices now read it.¹⁰¹

In any event, courts and commentators have generally treated this passage as announcing that henceforward the boundaries of the “Arms” covered by the Second Amendment will be set by whether they are “in common use.” Notably, however, this limit on *Heller*’s otherwise sweeping definition of “Arms” is not itself rooted in the Amendment’s text.

C. *Heller Adds Extratextual Elaborations: “Dangerous” and “Unusual”*

⁹⁷ 554 U.S. at 624-25 (internal citations omitted).

⁹⁸ Jacobs, *supra* note 90, at 244 (“The *Heller* majority was mainly concerned with refuting Justice Stevens’ argument in dissent that *Miller* supported a collective right interpretation of the Second Amendment, and only briefly touched on the ‘type of weapon’ test *Miller* appears to suggest[.]”).

⁹⁹ 554 U.S. at 625 (emphasis added).

¹⁰⁰ *Id.* at 627 (emphasis added).

¹⁰¹ See *supra* Section IV.C (discussing absolutist approach to common use test). See, e.g., Smith, *Dangerous, but Not Unusual*, *supra* note 35, at 625 (“*Heller* established the *rule of decision* or test for arms-ban cases: the test is that arms which are ‘in common use’ are protected by the Second Amendment and cannot be banned. Full stop.”). See also Margaret H. Lemos, *Should Judicial Opinions Be Read Like Statutes?*, 120 NW. U. L. REV. 1631 (2026).

Having cited dictionary definitions and then limited them with the “common use” principle, *Heller* proceeded to add other elaborations to the scope of the Second Amendment, some of which it seemingly attributes to *Miller*, and some of which it simply invents whole cloth, and none of which are found within the text of the Second Amendment. Many of these terms have been treated as precedent by later courts, moving the common use test even further from the text of the Amendment.

Most significantly, *Heller* invoked common law prohibitions of “dangerous and unusual” or “dangerous or unusual” weapons in connection with the common use test:

We also recognize another important limitation on the right to keep and carry arms. *Miller* said, as we have explained, that the sorts of weapons protected were those “in common use at the time.” We think that limitation is fairly supported by the historical tradition of prohibiting the carrying of “dangerous and unusual weapons.”¹⁰²

The relationship between the “dangerous and unusual” language and the common use test has been the subject of much discussion—the two are generally treated as being closely connected and perhaps even symmetric in their origins and application.¹⁰³ Some have argued, for example, that *Heller* “crafted its common-use test from the historical tradition of banning dangerous and unusual arms.”¹⁰⁴ But the common law sources referring to the historical tradition of banning dangerous and unusual arms do not use the words “common use”; that phrase comes from *Miller*, which for its part does not use the words “dangerous” or “unusual.” *Heller* simply pieced the two together in an apparent attempt to treat them as consistent and perhaps even repetitive.

The most significant question about the words “dangerous” and “unusual”

¹⁰² *Id.* at 627-28 (internal citations omitted). The Court suggested that it would be “startling” if the Second Amendment were interpreted in such a way that “the National Firearms Act’s restrictions on machineguns . . . might be unconstitutional,” *id.* at 624. In the aftermath of *Bruen*, that restriction has indeed been found unconstitutional in multiple cases. *United States v. Brown*, 764 F. Supp. 3d 456 (S.D. Miss. 2025); *United States v. Morgan*, No. 6:23-cr-10047-JWB, 2024 WL 3936767, at *2 (D. Kan. Aug. 26, 2024).

¹⁰³ See, e.g., *Bruen*, 597 U.S. at 47 (contrasting “dangerous and unusual weapons” with those that are “in ‘common use’ for self-defense today”); *Duncan v. Bonta*, 133 F.4th 852, 903 (9th Cir. 2025) (Bumatay, J., dissenting) (“In other words, whether a weapon is ‘dangerous and unusual’ or ‘in common use’ are different sides of the same coin.”); *Heller v. District of Columbia*, 670 F.3d 1244, 1272 (D.C. Cir. 2011) (*Heller II*) (Kavanaugh, J., dissenting) (“[*Heller*] said that ‘dangerous and unusual weapons’ are equivalent to those weapons not ‘in common use.’”).

¹⁰⁴ Nell, *supra* note 33, at 18 (citing *Heller* 554 U.S. at 627); Lindsay Colvin, *History, Heller, and High-Capacity Magazines: What Is the Proper Standard of Review for Second Amendment Challenges*, 41 FORDHAM URB. L.J. 1041, 1049 (2014) (“To honor the historical restriction on the possession of ‘dangerous and unusual weapons,’ the Court upheld the common use standard first described in *Miller*.”).

is whether they should be read conjunctively—that is, that the weapons falling outside the Second Amendment’s coverage are only those that are both dangerous *and* unusual. Adoption of the conjunctive reading generally points in a deregulatory direction and effectively erases the relevance of both “unusual” and “dangerous,” since the former is treated as isomorphic with common use and the latter is disregarded either because all weapons are dangerous or because commonality renders a weapon immune to regulation even if it is dangerous.¹⁰⁵ Some judges have adopted such a reading,¹⁰⁶ including Justice Alito, as discussed in more detail in Section III.C.¹⁰⁷

But even if one looks only at the sources *Heller* cites, it is hardly clear that the test should be treated as conjunctive.¹⁰⁸ After all, of the twelve sources that *Heller* cites, half—including Blackstone—refer to “dangerous *or* unusual” weapons, rather than “dangerous *and* unusual” weapons.¹⁰⁹ Nor does “and” necessarily mean, as a matter of popular or legal language, that the test must be conjunctive. A roller coaster that prohibits “pregnant and elderly” riders excludes both groups, not just those who are simultaneously pregnant and elderly. Instead, the phrase “dangerous and unusual” might be better understood as a *hendiadys*, a figure of speech involving “two terms, separated by a conjunction, [that] are melded together to form a single complex expression,”¹¹⁰ like the Eighth Amendment’s prohibition on “cruel and unusual” punishment. As the D.C. Circuit put it in a recent decision upholding the District’s assault weapon ban: “[W]e can infer that dangerous in the phrase ‘dangerous and unusual’ means ‘uncommonly dangerous.’”¹¹¹ And as discussed in more detail

¹⁰⁵ See *infra* Section IV.B.

¹⁰⁶ See, e.g., *Duncan*, 133 F.4th at 903 (Bumatay, J., dissenting); *Hanson v. District of Columbia*, 120 F.4th 223, 263 (D.C. Cir. 2024) (Walker, J., dissenting); *Kolbe v. Hogan*, 849 F.3d 114, 152–53 (4th Cir. 2017) (Traxler, J., dissenting).

¹⁰⁷ See *infra* Section III.C. *Caetano v. Massachusetts*, 577 U.S. 411, 418 (2016) (Alito, J., concurring) (“Under the decision below, however, virtually every covered arm would qualify as ‘dangerous.’”).

¹⁰⁸ See, e.g., *Nat’l Ass’n for Gun Rts. v. Lamont*, 153 F.4th 213, 250–52 (2d Cir. 2025) (Nathan, J., concurring).

¹⁰⁹ For sources using “dangerous or unusual,” see 4 BLACKSTONE 148–149 (1769); C. HUMPHREYS, A COMPENDIUM OF THE COMMON LAW IN FORCE IN KENTUCKY 482 (1822); H. STEPHEN, SUMMARY OF THE CRIMINAL LAW 48 (1840); *O’Neill v. State*, 16 Ala. 65, 67 (1849); *English v. State*, 35 Tex. 473, 476 (1871); *State v. Lanier*, 71 N.C. 288, 289 (1874).

For those using “dangerous and unusual,” see *State v. Langford*, 10 N.C. 381, 383–384 (1824); 3 B. WILSON, WORKS OF THE HONOURABLE JAMES WILSON 79 (1804); J. DUNLAP, THE NEW-YORK JUSTICE 8 (1815); 1 W. RUSSELL, A TREATISE ON CRIMES AND INDICTABLE MISDEMEANORS 271–272 (1831); E. LEWIS, AN ABRIDGMENT OF THE CRIMINAL LAW OF THE UNITED STATES 64 (1847); F. WHARTON, A TREATISE ON THE CRIMINAL LAW OF THE UNITED STATES 726 (1852).

¹¹⁰ Samuel L. Bray, “Necessary and Proper” and “Cruel and Unusual”: *Hendiadys in the Constitution*, 102 VA. L. REV. 687, 695 (2016); Saul Cornell, *The Early American Tradition of Arms Regulation: Common Law, Common Weapons, and Common Use*, DUKE L.J. ONLINE (forthcoming 2026), at 6.

¹¹¹ *Hanson*, 120 F.4th at 238 n.7. See also *Nat’l Ass’n for Gun Rts. v. Lamont*, 153 F.4th 213,

below,¹¹² the erasure of dangerousness as a relevant factor—as happens when “unusual” is treated as the only relevant word—raises serious problems for the common use test as a guide to the Second Amendment’s scope.

“Dangerous” and “unusual” are not the only extratextual elaborations and alterations that *Heller* suggested when defining the scope of Arms protected by the Second Amendment. In the course of quoting *Miller* in the passage reproduced above, *Heller* went on to say: “The traditional militia was formed from a pool of men bringing arms ‘in common use at the time’ *for lawful purposes like self-defense*.”¹¹³ In another passage, *Heller* similarly said that militia members “would bring the sorts of *lawful* weapons that they possessed at home to militia duty.”¹¹⁴ This appears to be an extension of *Miller*’s shaky historical claim about how the Founding era militia were armed¹¹⁵ with the addition of concepts—“lawful purposes” and “self-defense”—that *Miller* does not invoke and *Heller* does not justify or even explain. Indeed, this purported lawful-purpose-for-possession inquiry is hard to square with *Heller*’s own notion that “common use” was tied to militia service. As Jack Thorlin puts it, “If a militiaman came to muster with whatever weapons they had on hand, why would anyone care if the weapon had a lawful purpose before it was put into military use on a battlefield?”¹¹⁶

Elsewhere, *Heller* equated bannable weapons with those weapons “not typically possessed by law-abiding citizens for lawful purposes.”¹¹⁷ In its own account of the Amendment’s “plain text,” Wolford turned the dials yet again, citing *Heller* for the proposition that “Arms” covers “any weapon *customarily* used for offensive or defensive purposes.”¹¹⁸ Is “customarily” (a word that doesn’t appear in *Heller*) the same as “typically”? Where do those standards come from, and how do they relate to “common use”?¹¹⁹ If the measure of “common” use is typicality, then the test is hard to satisfy and few weapons will fall within the

222 (2d Cir. 2025) (“We conclude . . . that this historical tradition encompasses those arms that legislators determined were unusually dangerous because of their characteristics.”); *Teter v. Lopez*, 76 F.4th 938, 950 (9th Cir. 2023) (considering “whether the weapon has uniquely dangerous propensities and whether the weapon is commonly possessed by law-abiding citizens for lawful purposes” under the “dangerous and unusual” test); Eugene Volokh, *Implementing the Right to Keep and Bear Arms for Self-Defense: An Analytical Framework and a Research Agenda*, 56 UCLA L. REV. 1443, 1481-83 (2009) (proposing a test that would exclude dangerously unusual weapons).

¹¹² See *infra* Section IV.C.

¹¹³ *Heller*, 554 U.S. at 624 (emphasis added).

¹¹⁴ *Id.* at 627 (emphasis added).

¹¹⁵ See *infra* Section II.B.

¹¹⁶ Thorlin, *supra* note 78, at 1079 n.16.

¹¹⁷ 554 U.S. at 624-25 (internal citations omitted).

¹¹⁸ No. 24-1046, 2026 WL 1825723, at *6 (U.S. June 25, 2026) (emphasis added).

¹¹⁹ Cf. *United States v. Virginia*, 518 U.S. 515, 571 (1996) (Scalia, J., dissenting) (complaining about majority allegedly recasting intermediate scrutiny test as requiring an “exceedingly persuasive justification”).

Second Amendment's coverage. After all, Americans "typically possess[]" no guns at all—most do not own (or even live in a house with) a gun of any kind,¹²⁰ let alone an assault weapon or high-capacity magazine.

Considered as a whole, these extratextual embellishments undermine the notion that *Heller* is simply operating within the plain text of the Second Amendment. Indeed, they demonstrate just how *un*constraining a purported focus on text can be,¹²¹ and how seemingly slight alterations can fundamentally shift the meaning and application of the underlying text and test. "Plain" text alone thus can justify neither these additional inquiries nor the common use test itself.

II. HISTORY AS COVERAGE: THE SHAKY FOUNDATIONS OF *UNITED STATES V. MILLER*

If the text of the Second Amendment alone cannot justify the common use test, perhaps it can be grounded in historical analysis beyond evidence of historical understanding of the word "Arms." After all, the test is often treated as if it were an originalist doctrine¹²² and it is embedded in a broader Second Amendment framework that proclaims itself to be originalist.

Again, problems quickly emerge. As outlined in Part I, the phrase "common use" originates not in the Founding era but in the Court's 1939 decision in *Miller*,¹²³ making it decades younger than the 1911 New York licensing law that the Court struck down in *Bruen* as lacking sufficient historical lineage.¹²⁴ Even then, *Miller*'s common use language was not seriously invoked by scholars and judges until decades after its opinion was issued.

Any historical justifications for the common use test depend on *Miller*'s historical claims and its doctrinal pedigree. In *Miller*, the Court rejected a Second Amendment challenge to a provision of the National Firearms Act (NFA) that criminalized the private possession of short-barreled shotguns. The case was litigated in an unusual fashion,¹²⁵ in part because Jack Miller (a gangster charged

¹²⁰ Katherine Schaeffer, *Key Facts About Americans and Guns*, PEW RSCH CTR. (July 24, 2024) <https://www.pewresearch.org/short-reads/2024/07/24/key-facts-about-americans-and-guns/> ("About four-in-ten U.S. adults say they live in a household with a gun, including 32% who say they personally own one, according to a Center survey conducted in June 2023. These numbers are virtually unchanged since the last time we asked this question in 2021.").

¹²¹ *Cf.* *Stanley v. City of Sanford, Fla.*, 145 S. Ct. 2058, 2089 (2025) (Jackson, J. dissenting) (arguing in the context of statutory interpretation that "pure textualism is incessantly malleable—that's its primary problem—and, indeed, it is certainly somehow always flexible enough to secure the majority's desired outcome").

¹²² See *supra* note 55 and sources cited therein.

¹²³ 307 U.S. 174 (1939).

¹²⁴ 597 U.S. at 66 n.28 (striking down New York law and specifically disregarding "20th-century historical evidence").

¹²⁵ See Brian L. Frye, *The Peculiar Story of United States v. Miller*, 3 NYU J. L. & LIB. 48, 50 (2008).

with possessing a prohibited weapon) lost contact with his lawyer, who declined to appear in person to argue the case.¹²⁶ Defending the constitutionality of the NFA,¹²⁷ Solicitor General Robert Jackson argued that the right to keep and bear arms was historically “restricted to the keeping and bearing of arms by the people collectively for their common defense and security,” and that the Amendment’s first clause “indicates that the right . . . is not one which may be utilized for private purposes but only one which exists where the arms are borne in the militia or some other military organization provided for by law and intended for the protection of the state.”¹²⁸

The Court’s unanimous but brief opinion seemed to adopt Jackson’s argument that the Amendment was limited to the militia: “With obvious purpose to assure the continuation and render possible the effectiveness of such forces the declaration and guarantee of the Second Amendment were made. It must be interpreted and applied with that end in view.”¹²⁹ The Justices translated this principle into a coverage determination, rejecting Miller’s Second Amendment claim on the basis that Miller had failed to show that his possession of a sawed-off shotgun had an “reasonable relationship to the preservation or efficiency of a well regulated militia.”¹³⁰ In the course of discussing this militia-based reading of the Second Amendment, the *Miller* Court wrote that “men were expected to appear bearing arms supplied by themselves and of the kind *in common use at the time*.”¹³¹

For the rest of the 20th century, *Miller* was the Court’s most substantive engagement with the meaning of the Second Amendment. And since federal courts during that time read the Amendment to protect only those persons, activities, and arms having some relationship to the organized militia, *Miller*—to the degree it was cited at all—was generally invoked to support the proposition that “the Second Amendment guarantees no right to keep and bear a firearm that does not have ‘some reasonable relationship to the preservation or efficiency of a well regulated militia.’”¹³² Even Justice Thomas, summarizing

¹²⁶ By the time the Court’s decision was announced, Miller was dead—shot and left in a creek bed. *Id.* at 68.

¹²⁷ There is reason to believe that *Miller* was designed by government lawyers as a test case for the NFA. ADAM WINKLER, *GUNFIGHT: THE BATTLE OVER THE RIGHT TO BEAR ARMS IN AMERICA* 213-14 (2009).

¹²⁸ *Id.* at 215.

¹²⁹ *Miller*, 307 U.S. at 178.

¹³⁰ *Id.* at 177.

¹³¹ *Id.* at 179 (emphasis added).

¹³² See *Lewis v. United States*, 445 U.S. 55, 65 n.8 (1980); *Adams v. Williams*, 407 U.S. 143, 150 (1972) (Douglas, J., dissenting) (“The Second Amendment, it was held, ‘must be interpreted and applied’ with the view of maintaining a ‘militia.’”); *United States v. Hale*, 978 F.2d 1016, 1019 (8th Cir. 1992) (“The rule emerging from *Miller* is that, absent a showing that the possession of a certain weapon has ‘some reasonable relationship to the preservation or efficiency of a well-regulated militia,’ the Second Amendment does not guarantee the right to possess the weapon.”). See also LAURENCE TRIBE, *AMERICAN CONSTITUTIONAL LAW* 226. n.6 (1978) (“[T]he

Miller in *Printz v. United States*, made no mention of the common use test: “In *Miller*, we determined that the Second Amendment did not guarantee a citizen’s right to possess a sawed-off shotgun because that weapon had not been shown to be ‘ordinary military equipment’ that could ‘contribute to common defense.’”¹³³ *Miller*’s reference to “common use” simply was not treated as an important holding. Fewer than a half-dozen references to that portion of the opinion appear in the federal reports over the next 80 years,¹³⁴ and it was never invoked in cases involving restrictions on assault weapons even after those weapons hit the market.¹³⁵

But beginning in the 1950s, an increasing number of advocates, scholars, and eventually judges began to expound the view that the Second Amendment is not limited to the organized militia but instead encompasses an individual right to keep and bear arms for private purposes like self-defense in the home—a view which would eventually be adopted by the Supreme Court in *Heller*. Supporters of this reading of the Amendment (including Justice Thomas) came to discount the significance of *Miller*,¹³⁶ and their critiques (many of which would later be echoed in *Heller* itself) provide some of the strongest reasons for *not* constructing constitutional doctrine atop *Miller*’s reference to “common use.”

A. *Miller Is Not Originalist*

One problem with treating *Miller*’s reference to “common use” as a building block of the Second Amendment’s purportedly originalist doctrine is that *Miller* was not an originalist opinion—it hardly makes a pretense of engaging with the historical record. Ironically, the easiest citation for this proposition is *Heller*’s own extended criticism of *Miller*:

inapplicability of the second amendment to . . . congressional firearms controls not shown to interfere with the preservation of state militia, *United States v. Miller*, 307 U.S. 174 (1939), comports with the narrowly limited aim of the amendment as merely ancillary to other constitutional guarantees of state sovereignty.”)

¹³³ 521 U.S. 898, 938 n.1 (1997) (Thomas, J., concurring) (citation omitted).

¹³⁴ See *In re Brown*, 189 B.R. 653, 663–65 (Bankr. M.D. La. 1995); *Owens v. Markley*, 186 F.Supp. 604, 607 (S.D. Ind. 1960); *United States v. Emerson*, 270 F.3d 203, 225–26 (5th Cir. 2001); *Seegars v. Ashcroft*, 297 F.Supp.2d 201, 219–20 (D.D.C. 2004); *Parker*, 478 F.3d at 397–98. With the exception of *Parker* (the case that became *Heller*), all of these cases rejected Second Amendment challenges.

¹³⁵ Most such cases simply dismissed the Second Amendment claims altogether. See, e.g., *Silveira v. Lockyer*, 312 F.3d 1052, 1087 (9th Cir. 2002) (“Thus, we hold that the Second Amendment imposes no limitation on California’s ability to enact legislation regulating or prohibiting the possession or use of firearms, including dangerous weapons such as assault weapons.”).

¹³⁶ See, e.g., *Printz v. United States*, 521 U.S. 898, 938 n.1 (1997) (Thomas, J., concurring) (“The Court [in *Miller*] did not . . . attempt to define, or otherwise construe, the substantive right protected by the Second Amendment.”); Nelson Lund, *The Second Amendment, Political Liberty, and the Right to Self-Preservation*, 39 ALA. L. REV. 103, 109 (1987).

As for the text of the Court’s opinion itself, that discusses none of the history of the Second Amendment. It assumes from the prologue that the Amendment was designed to preserve the militia, (which we do not dispute), and then reviews some historical materials dealing with the nature of the militia, and in particular with the nature of the arms their members were expected to possess. Not a word (*not a word*) about the history of the Second Amendment. This is the mighty rock upon which the dissent rests its case.¹³⁷

This belies any notion that *Miller*’s passing reference to common use supplied an originalist standard of decision. It did not. Yet *Heller* nevertheless built the common use test on a tiny portion of what it otherwise sarcastically dismisses as a “mighty rock.” That *Heller* did so is especially ironic in light of the fact that Justice Scalia elsewhere derided *Miller* as not only non-originalist, but “uncontested and virtually unreasoned,”¹³⁸ emphasizing that it was only argued on one side. This fact alone was “reason enough” for the *Heller* majority “not to make [*Miller*] the beginning and the end of this Court’s consideration of the Second Amendment[.]”¹³⁹ In response to Justice John Paul Stevens’ argument in dissent that *Miller* supported the militia-focused reading of the Second Amendment and has correctly been read that way for nearly a century, Justice Scalia simply discounted *Miller* altogether:

As for the “hundreds of judges,” who have relied on the view of the Second Amendment Justice Stevens claims we endorsed in *Miller*. If so, they overread *Miller*. And their erroneous reliance upon an uncontested and virtually unreasoned case cannot nullify the reliance of millions of Americans (as our historical analysis has shown) upon the true meaning of the right to keep and bear arms.¹⁴⁰

This passage is notable in part because it introduces a kind of populist rhetoric that has become a prominent part of the common use test:¹⁴¹ The fact that “millions of Americans” have supposedly “reli[ed]” on Justice Scalia’s reading of *Miller* provides a kind of constitutional coverage that judges cannot “nullify.” This further undermines the relevance of the case from which the common use test derives.

Justice Scalia likewise dismissed the relevance of a later Supreme Court case, *Lewis v. United States*, which had cited *Miller* for the proposition that “the Second Amendment guarantees no right to keep and bear a firearm that does not have ‘some reasonable relationship to the preservation or efficiency of a well

¹³⁷ District of Columbia v. Heller, 554 U.S. 570, 624 (2008).

¹³⁸ *Id.* at 624 n.24.

¹³⁹ *Id.* at 623.

¹⁴⁰ *Id.* at 624 n.24.

¹⁴¹ See *infra* notes 269-272 and 304-307 and accompanying text.

regulated militia’).¹⁴² According to Justice Scalia, “[i]t is inconceivable that we would rest our interpretation of the basic meaning of any guarantee of the Bill of Rights upon such a footnoted dictum in a case where the point was not at issue and was not argued.”¹⁴³ And yet, except for the “footnoted” part, this essentially describes how *Heller* derived the common use test from *Miller*.¹⁴⁴

B. Miller’s Historical Claim Is Dubious

Heller is correct that *Miller* is not an originalist opinion, but the phrase “common use” is indeed embedded in a statement about the past: that “men were expected to appear bearing arms supplied by themselves and of the kind in common use at the time.” Most people read this as saying that men were expected to show up for militia muster with private weapons of the kind that were popular at the time.¹⁴⁵ This is the interpretation that *Heller* would later bolster with a quote from a 1980 state court case that in turn (and somewhat misleadingly) cited a book by a collector of Revolutionary War weapons: “In the colonial and revolutionary war era, [small-arms] weapons used by militiamen and weapons used in defense of person and home were one and the same.”¹⁴⁶ And

¹⁴² 445 U.S. 55, 65-66 n.8 (1980).

¹⁴³ *Heller*, 554 U.S. at 625 n.25.

¹⁴⁴ Jacobs, *supra* note 90, at 276 (“This one sentence hardly represents the creation of a common use test, particularly when the Court applied a completely different test in actually determining the outcome of the case.”).

¹⁴⁵ The phrase could actually mean many different things: That people were expected to supply only those weapons that were in common use at the time, for example, or that some men supplied their own while others bore “common use” weapons.

¹⁴⁶ *Heller*, 554 U.S. at 624-25 (citing *State v. Kessler*, 289 Ore. 359, 368, 614 P.2d 94, 98 (1980) (citing G. NEUMANN, *SWORDS AND BLADES OF THE AMERICAN REVOLUTION* 6-15, 252-254 (1973))).

According to his obituary, George C. Neumann was a business executive with an abiding interest in Revolutionary Era weapons; he later sold his collection to the National Park Service. *George Neumann Obituary*, MIDDLETOWN (CT) PRESS (April 23-24, 2014) <https://www.legacy.com/us/obituaries/middletownpress/name/george-neumann-obituary?id=17217412>. The book of his cited in *Kessler* is an illustrated guide to various arms of the period and an excellent source for that purpose, but does not support the proposition for which it is included. Thorlin, *supra* note 78, at 1081 (“Reviewing that book, this Author found nothing on the cited pages relevant to the proposition that militia fought in battle only with the weapons they had on hand when they were summoned for militia service.”).

To the contrary, Neumann’s book—as the title suggests—emphasizes the primacy of *bladed* weapons rather than guns: “Despite advances in firearms, the classic 18th century battle was still decided by the clash of edged weapons at close quarters.” NEUMANN, *supra*, at 19. Specifically, “[d]espite the romantic traditions associated with early firearms, swords, and polearms, it was the bayonet which ultimately determined the victor in most 18th century battles, and, to a large extent, the outcome of our War for Independence.” *Id.* at 22. Little wonder, then, that the Militia Act required militia members to bring bayonets while specifying handguns only for cavalry officers and dragoons. *See infra* 149-161.

The fact that so many of the historical claims built into the common use test many are

it is a claim frequently repeated by those who support a broad reading of “Arms.”¹⁴⁷ Only by tracing the root claims can one see how judicial choices and claims about constitutional memory have shaped the doctrine. And the fact that so of the historical claims built into the common use test are shaky, misleading, or simply inaccurate makes it hard to maintain any confidence that the common use test, and perhaps the whole purportedly originalist Second Amendment framework in which it is embedded, meaningfully reflects history.

Miller was right that at the time of the Founding some men were expected to bring weapons to muster. But it does not follow that such weapons were the same as those they would use for private purposes like hunting, let alone that such weapons were “in common use.” To the contrary (and as *Miller* itself acknowledged, further casting doubt on whether *Heller*’s reading of it is accurate) militia members were legally required to bring very specific weapons, *not* just those they might happen to have at home.¹⁴⁸ In the words of the Militia Act of 1792, each militia member had to:

[P]rovide himself with a good musket or firelock, a sufficient bayonet and belt, two spare flints, and a knapsack, a pouch with a box therein to contain not less than twenty-four cartridges, suited to the bore of his musket or firelock, each cartridge to contain a proper quantity of powder and ball: or with a good rifle, knapsack, shot-pouch and powder-horn, twenty balls suited to the bore of his rifle and a quarter of a pound of powder.¹⁴⁹

These requirements were serious enough that the Act went on to specify that “during their time of being under arms,” members would be subject to “inspect

shaky, misleading, or simply inaccurate makes it hard to maintain any confidence that the common use test, and perhaps the whole purportedly originalist Second Amendment framework in which it is embedded, meaningfully reflects history.

¹⁴⁷ See, e.g., *Bianchi v. Brown*, 111 F.4th 438, 489 (4th Cir. 2024) (Richardson, J., dissenting) (“Yet because most colonists could not afford to own an array of arms, particularly firearms, they typically satisfied [requirements to keep weapons in their home] by keeping weapons that were common for individual self-defense or hunting.”) (citations omitted, though *Miller* is one of them); *Hirschfeld v. Bureau of Alcohol, Firearms, Tobacco & Explosives*, 5 F.4th 407, 427 n.24 (4th Cir. 2021) (“Indeed, some militias were voluntary and used private arms, such as privateers protecting merchants with private battleships during the 1798–1800 Quasi-War between the United States and France. The civic and individual purposes could and did reinforce each other.”) (citations omitted). See also STEPHEN P. HALBROOK, *THE FOUNDERS’ SECOND AMENDMENT: ORIGINS OF THE RIGHT TO BEAR ARMS* 123 (2008); Nelson Lund, *D.C.’s Handgun Ban and the Constitutional Right to Arms: One Hard Question?*, 18 GEO. MASON U. CIV. RTS. L.J. 229, 246 (2008).

¹⁴⁸ *Miller*, 307 U.S. at 179–82 (recounting state requirements); *Heller*, 554 U.S. at 716 (Breyer, J., dissenting) (noting that some militia statutes at the time found handguns “‘acceptable’ only for certain special militiamen (generally, certain soldiers on horseback), while requiring muskets or rifles for the general infantry”).

¹⁴⁹ Militia Act, ch. 33, 1 Stat. 271 (1792).

their arms, ammunition, and accoutrements”¹⁵⁰

The Militia Act’s requirements reflected the fact that a central concern at the time was that there would not be *enough* militia-appropriate weapons. It does not seem likely that legal mandates would have been enacted if military-ready weapons were already widely owned by private citizens. Nor would it make sense that even prominent militia like the Minutemen had their weapons supplied by the government if such ownership was truly widespread.¹⁵¹ And if certain arms were “in common use” *because* they were required by law or provided by the state, then it is hard to see how the “common use” line in *Miller* could have anything to do with weapons that private individuals might choose for private purposes like hunting or self-defense.¹⁵²

The assumption underlying *Heller*’s reading of *Miller* seems to be that military weaponry and private weaponry were relatively interchangeable in the Founding Era. Certainly, the gap between private and military weaponry was smaller then than it is today.¹⁵³ But even in 1791, the two were different, and any arms popularly used for lawful purposes like hunting and self-defense could not necessarily have been easily repurposed for military use. Fowling pieces and military muskets, for example, were similar in some ways. But they differed in crucial ways as well—for example, military muskets were often used to club and stab enemies rather than to shoot them; tasks for which fowling pieces were not well-suited.¹⁵⁴ And neither kind of musket was particularly useful for self-defense against an immediate threat, given that they were bulky, slow, and could not be stored loaded.¹⁵⁵

¹⁵⁰ *Id.* at 273.

¹⁵¹ Thorlin, *supra* note 78, at 1082. *See also* Cornell, *supra* note 110, at 20 (“The notion that government policy about firearms was dictated by the market gets the history backwards. Without active government intervention in the market, including support for the nascent American firearms industry the new nation would never have been able to defend itself.”).

¹⁵² *Id.* at 1083 (“If the militia needed all this community support to function even somewhat adequately, it makes little sense to assume the Second Amendment covers only the right for individuals to provide their own inadequate weapons. Instead, the Second Amendment should be understood as securing the right of towns, states, and private groups to arm the militias with militarily useful weapons.”).

¹⁵³ *Cf. Heller*, 554 U.S. at 627-68 (“[T]he fact that modern developments have limited the degree of fit between the prefatory clause and the protected right cannot change our interpretation of the right.”); Brian DeLay, *The Myth of Continuity in American Gun Culture*, 113 CALIF. L. REV. 1, 35-46 (2025).

¹⁵⁴ GEORGE D. MOLLER, AMERICAN MILITARY SHOULDER ARMS, VOLUME I: COLONIAL AND REVOLUTIONARY WAR ARMS 70 (2011) (“The fowling of the British colonists are . . . a matter of interest to the arms student because fowling guns were sporting, not military, arms. If they saw military service, it was only as a weapon of last resort.”); Kevin M. Sweeney, *Firearms, Militias, and the Second Amendment*, in THE SECOND AMENDMENT ON TRIAL: CRITICAL ESSAYS ON DISTRICT OF COLUMBIA V. HELLER 310, 312 (Saul Cornell & Nathan Kozuskanich eds., 2013) (concluding that colonists’ regular weapons were “not necessarily well suited to military use in the field”); Thorlin, *supra* note 78, at 1094-98.

¹⁵⁵ Thorlin, *supra* note 78, at 1091-94 (showing that “[m]uskets were thus extremely useful

All of this could perhaps be dismissed as academic but for the fact that courts have treated *Miller*'s statement as a fact about the past and a basis for expanding gun rights. This is notably true of *Parker v. District of Columbia*,¹⁵⁶ the case that would become *Heller* after Dick Heller was substituted in as the named plaintiff. The D.C. Circuit doubled down on the notion that *Miller* establishes that citizens in the Founding brought their private arms to muster, that such weapons were “in common use,” and—further—that handguns were among those commonly owned weapons. According to *Parker*, “militiamen were expected to bring their private arms with them when called up for service. Those weapons would be of the kind in common use at the time. There can be no question that most handguns (those in common use) fit that description then and now.”¹⁵⁷

As with the common use test itself, one can see how the pieces of this argument fit together while also questioning whether they have any connection to historical reality. *Parker*'s confidence that there “[t]here can be no question” about the commonality of handguns¹⁵⁸ is puzzling because the court immediately thereafter quoted the Militia Act, which, as noted above, specifies in some detail the weapons that militiamen were expected to bring. The Act refers to bayonets (which one of *Heller*'s historical sources describes as the most important form of military arm at the time¹⁵⁹) as well as muskets, firelocks, or rifles with appropriate ammunition, but makes no mention of handguns. How could there be “no question” that the latter were in common use?

Parker went on to quote the “more onerous” requirements for commissioned officers and artillery officers subject to the Militia Act.¹⁶⁰ But even they did not have to bring handguns. The only people who did were commissioned cavalry officers and dragoons, who, in *Parker*'s words, “had to assume an even greater expense, *perhaps due to the fact that these were volunteer positions*

precisely for defeating national security threats on a battlefield, not for immediate personal self-defense”).

¹⁵⁶ 478 F.3d 370 (D.C. Cir. 2007).

¹⁵⁷ *Id.* at 397-98.

¹⁵⁸ *Id.* *Heller* similarly declared that “the American people have considered the handgun to be the quintessential self-defense weapon,” 554 U.S. at 629, a proposition that lacks citation and appears contrary to fact, since guns are rarely used for self-defense; indeed, most self-defense actions involve no weapons of any kind. David Hemenway & Sara J. Solnick, *The Epidemiology of Self-Defense Gun Use: Evidence from the National Crime Victimization Surveys 2007–2011*, 79 PREVENTIVE MED. 22, 23 (2015) (finding that guns were used for self-defense in less than 1% of personal contact crimes). Even Jongyeon Tark and Gary Kleck, whose estimate of 2.5 million defensive gun uses per year is by far the high-side outlier, has concluded that nearly twice as many people defend themselves with nongun weapons than with guns. Jongyeon Tark & Gary Kleck, *Resisting Crime: The Effects of Victim Action on the Outcomes of Crime*, 42 CRIMINOLOGY 861, 878 (2004). See also Eric Ruben, *Law of the Gun: Unrepresentative Cases and Distorted Doctrine*, 107 IOWA L. REV. 173, 195-207 (2021).

¹⁵⁹ NEUMANN, *supra* note 146, at 22.

¹⁶⁰ *Parker*, 478 F.3d at 397.

*reserved for the well-off.*¹⁶¹ It is hard to see how *Parker*'s own analysis supports the notion that handguns were in common use at the time, given that even wealthy officers—those most likely to afford handguns for private use—had to be legally required to bring them. *Parker*'s only support for the “There can be no question” claim is a *See* citation to a footnote in the Fifth Circuit's 2001 decision in *United States v. Emerson*, which was the only other pre-*Heller* federal case to embrace the private purposes vision of the Second Amendment.¹⁶² And that footnote in *Emerson* explicitly emphasized that the parties had not even argued the issue.¹⁶³ *Parker*'s reading of *Miller* is thus another notable example of how a stray historical statement—in this case, the “in common use” phrase—can be simultaneously distorted and elevated into something like a doctrinal test.

C. An Alternative Reading of “Common” Use as “Public” or “Shared”

Nearly all invocations of the common use test treat the word “common” as meaning something like “popular.” This is in keeping with the dominant contemporary understanding of the word (a far cry from what it primarily meant in 1791¹⁶⁴) and it can be made to fit somewhat comfortably with the concepts of “dangerous” and especially “unusual,” which *Heller* introduced as further shading on the test.¹⁶⁵ But it is not at all certain that this is what *Miller* meant by “common.”

Common does not always mean popular, either in customary usage or in law. When people speak of common property or common good or common law or a common denominator, they do not mean the property or good or law or denominator that is most frequent. In 1939 as now, “common” can and often does point to something that is public or shared.

Strikingly, *Miller* itself uses “common” in this very sense just one sentence before its reference to “common use”:

These show plainly enough that the Militia comprised all males physically capable of acting in concert for the *common defense*. “A body of citizens enrolled for military discipline.” And further, that ordinarily, when called for service these men were expected to appear bearing arms supplied by themselves and of the kind in *common use* at the time.¹⁶⁶

¹⁶¹ *Id.* at 398 (emphasis added) (citation omitted).

¹⁶² *United States v. Emerson*, 270 F.3d 203 (5th Cir. 2001), *abrogated by* *United States v. Diaz*, 116 F.4th 458 (5th Cir. 2024).

¹⁶³ *Id.* at 227 n.22.

¹⁶⁴ *See infra* notes 174-176 and accompanying text (showing that dictionaries from the time—including those that *Heller* uses to define “Arms”—primarily defined common as public or shared).

¹⁶⁵ *See supra* Section I.C. Neither word appears in *Miller*, nor do the common law sources that refer to “dangerous” and “unusual” mention “common use.”

¹⁶⁶ 307 U.S. at 179 (emphasis added).

Clearly, “common defense” does not mean “frequent defense”; it means public, shared, and civic. To reach *Heller*’s reading, then, one must conclude that *Miller* used the word “common” in two different ways in consecutive sentences. That it is not at all impossible, but it does require some explanation—especially given that *Heller*’s own reading of the Second Amendment’s text begins with an extended argument that the phrase “the people” should be given a shared (one is tempted to say “common”) meaning throughout the Constitution.¹⁶⁷ If such intratextualism¹⁶⁸ is strong enough to support a new interpretation of the Second Amendment’s text, why would it not apply to the reading of two consecutive sentences in *Miller*, especially since doing so would be in keeping with how courts had been reading *Miller* throughout the 20th century?¹⁶⁹ In fact, in the course of parsing *Miller*—and effectively erasing its reference to “ordinary military equipment”—Justice Scalia emphasized that *these two specific sentences* should be read in conjunction: “We think that *Miller*’s ‘ordinary military equipment’ language must be read in tandem with what comes after ...”¹⁷⁰ Reading the word common “in tandem” suggests that *Heller*’s own reading of *Miller* is incorrect on this score.

One might argue that “common defense” is a term of art and “common use” is not, such that the latter can indeed be read as “popular use” even if the former means “public.” But to say that something is “in common use” can clearly mean, just as it did in 1939, that it is shared by two or more people.¹⁷¹ Consider Justice Louis Brandeis’ famous formulation, penned two decades before *Miller* (which Justice Brandeis joined): “The general rule of law is, that the noblest of human productions—knowledge, truths ascertained, conceptions, and ideas—become, after voluntary communication to others, free as the air to *common use*.”¹⁷² Other cases decided contemporaneously with *Miller* and in a variety of legal contexts similarly employed this formulation of “common use” as belonging to more than one.¹⁷³

¹⁶⁷ *Heller*, 554 U.S. at 581 (arguing that because other provisions “unambiguously refer to individual rights, not ‘collective’ rights, or rights that may be exercised only through participation in some corporate body,” this supports a “strong presumption that the Second Amendment right is exercised individually and belongs to all Americans”).

¹⁶⁸ Akhil Reed Amar, *Intratextualism*, 112 HARV. L. REV. 747 (1999).

¹⁶⁹ One might say that *Heller* adopts intratextualism only for *constitutional* text, but Justice Scalia makes the same move with regard to “carry”—equating its meaning in the Second Amendment to its meaning in a federal criminal statute. *Heller*, 554 U.S. at 584.

¹⁷⁰ *Id.* at 624.

¹⁷¹ Omitting the “in” and just using the phrase “common use” seems to distort the phrase even further from the way that *Miller* actually employed it—suggesting that “commonly used” is the inquiry, emphasizing the activity rather than the shared character.

¹⁷² *International News Serv. v. Associated Press*, 248 U.S. 215, 250 (1918) (Brandeis, J., dissenting) (emphasis added). See also Yochai Benkler, *Free As the Air to Common Use: First Amendment Constraints on Enclosure of the Public Domain*, 74 N.Y.U. L. REV. 354, 446 (1999).

¹⁷³ See, e.g., *Mercoird Corp. v. Mid-Continent Inv. Co.*, 320 U.S. 661, 676 (1944) (Frankfurter, J., dissenting); *Hanover Imp. Soc. v. Gagne*, 92 F.2d 888, 889 (1st Cir. 1937); *Hill v. Raymond*,

To the degree that the words “common use” are meant to be originalist, the point is even stronger, since “common” at the time of the Founding overwhelmingly meant shared rather than popular. The two dictionaries that *Heller* quotes for its definition of “Arms” confirm as much. In Samuel Johnson’s *Dictionary of the English Language* (1773) the leading definition of “common” is “Belonging equally to more than one” and the fourth is “Publick; general; serving the use of all”; only the sixth refers to “Frequent, usual; ordinary.”¹⁷⁴ Timothy Cunningham’s *A New and Complete Law Dictionary* (1771) begins: “Common is a right or privilege which one or more persons claim to take or use”¹⁷⁵ Other historical dictionaries are similar.¹⁷⁶

It therefore seems entirely plausible that *Miller*’s reference to “common use” meant something more like “public use” or “shared civic use,” rather than anything having to do with popularity. If so, the whole enterprise of looking for which weapons are most widely owned is predicated on a fundamental misreading of the origin text.

What might *Miller* have meant by common use as shared use? The very thing that the Militia Act sought to achieve: standard weapons and ammunition.¹⁷⁷ Then as now, militaries prize standardized and ideally interchangeable weapons for a host of reasons—they can literally be shared (i.e., “in common use”) for training or even in combat; they facilitate battle planning by ensuring that soldiers have a similar (i.e., “common”) rate and range of fire; and they of course make it easier to equip the army as a whole (i.e., “in common”).¹⁷⁸ The Militia

81 F.2d 278, 280 (D.C. Cir. 1935).

¹⁷⁴ JOHNSON, *supra* note 82.

¹⁷⁵ CUNNINGHAM, *supra* note 82.

¹⁷⁶ See also THOMAS SHERIDAN, A COMPLETE DICTIONARY OF THE ENGLISH LANGUAGE (1796) (“Common: Belonging equally to more than one; having no possessor or owner; vulgar, mean, easy to be had, not feared; publick, mean, without birth or descent; frequent, useful, ordinary; prostitute.”); NOAH WEBSTER, AMERICAN DICTIONARY OF THE ENGLISH LANGUAGE (1828) (“1. Belonging equally to more than one, or to many indefinitely; as, life and sense are common to man and beast; the common privileges of citizens; the common wants of men; 2. Belonging to the public; having no separate owner. The right to a highway is common; . . . 5. Public; general; frequent; as common report.”).

¹⁷⁷ Krawczyk & Ambler, *supra* note 78, at 817 (“Perhaps the militia valued mechanical reliability or parts interchangeability in the field, or even mutual familiarity among militiamen with the operation of each other’s equipment. It seems unlikely that the militia would have tolerated rare, oddball, or unreliable firearms, or firearms only suited for hunting, close-quarters personal defense, or recreational shooting.”).

¹⁷⁸ See, e.g., George Harris, *Interchangeable Parts*, NRA SHOOTING ILLUSTRATED (Dec. 30, 2024) <https://www.shootingillustrated.com/content/interchangeable-parts/> (“Service firearms in the military branches of the United States have long been required to have part interchangeability.”); *id.* (“The primary idea was a matter of ease of maintenance and logistics to keep the firearm operational at the lower echelons of users for greater periods of time. If a small part broke or was lost, the gun could be put back in service by installing a new one or by scavenging a part from a firearm not in service.”). Indeed, the introduction of interchangeable parts is most closely associated with Eli Whitney’s use of them to assemble muskets. DAVID A.

Act itself specifically provided that “five years from the passing of this act, all muskets for arming the militia as herein required, shall be of bores sufficient for balls of the eighteenth part of a pound.”¹⁷⁹ The D.C. Circuit in *Parker* read this requirement as evidence of “planned phased-in upgrades in the quality of the militia’s firearms”¹⁸⁰ and thus determined that the category of “Arms” can continue to grow in lethality over time. The more natural reading is that it was intended, in the words of one commentator, “to streamline logistics by having a standardized size of bullet.”¹⁸¹

Heller grounds the common use doctrine in apparent dicta from *Miller* that courts and scholars alike ignored for decades. However, as *Heller* itself emphasizes, *Miller* is not an originalist decision. Nor does the historical claim from which *Heller* extracts “common use” find strong support in the historical record—at least as the claim as interpreted by *Heller*. Moreover, *Heller*’s reading of *Miller* may rest on a fundamental misinterpretation of the word common. Whatever else we might draw from this series of errors, history alone provides neither explanation nor justification for the common use test as a coverage doctrine for the Second Amendment.

III. COVERAGE AS WORKABILITY: COMMON USE IN THE ERA OF THE TWO-PART FRAMEWORK

Parts I and II focus on text and history because the Court has treated those as central to many of its recent doctrinal innovations—especially but not exclusively in the Second Amendment. But in other areas of constitutional rights law, coverage tests have developed at least in part as a tool for courts to weed out claims at the threshold so that they are not, for example, inundated with challenges requiring strict scrutiny for every government action that nominally involves speech.¹⁸² Another metric for evaluating a coverage test, then, might be that it serves as workable tool for sorting claims—a version of what *Bruen* might later call, in praise of its own test, “administrab[ility].”¹⁸³

Because *Heller* did not clearly articulate a test for evaluating the constitutionality of gun regulations—it concluded that the District of

HOUNSHEL, FROM THE AMERICAN SYSTEM TO MASS PRODUCTION, 1800-1932: THE DEVELOPMENT OF MANUFACTURING TECHNOLOGY IN THE UNITED STATES (1984).

¹⁷⁹ Militia Act, ch. 33, 1 Stat. 271, 271-72 (1792).

¹⁸⁰ *Parker*, 478 F.3d at 398.

¹⁸¹ Lucas Bernard, *In Common Use: Stabilizing Brace Regulation and Second Amendment Jurisprudence*, 52 S.U. L. REV. 133, 149 (2024).

¹⁸² Cf. RICHARD FALLON, IMPLEMENTING THE CONSTITUTION 4 (2001); Frederick Schauer, *The Politics and Incentives of First Amendment Coverage*, 56 WM. & MARY L. REV. 1613, 1619 (2015) (“If the coverage of the First Amendment were even close to the ordinary meaning of the word ‘speech,’ then vast segments of human life would remain shielded by the First Amendment from regulation or other legal consequences.”); Shanor, *supra* note 2, at 364.

¹⁸³ *Bruen*, 597 U.S. at 25.

Columbia’s near-total prohibition of private handgun possession would fail “any of the standards of scrutiny that we have applied to enumerated constitutional rights”¹⁸⁴—lower courts set about creating a test themselves. With a remarkable degree of unanimity, they settled on a two-part framework that combined an initial coverage inquiry¹⁸⁵ followed by, if necessary, application of scrutiny, the strictness of which was calibrated to how much the regulation impinged on the “core” of the right, which *Heller* identified as self-defense.¹⁸⁶ Most Second Amendment challenges failed under this framework.¹⁸⁷

With regard to class-of-arms cases such as those involving prohibitions on assault weapons, courts had to decide whether to resolve them at step one or at step two. Overwhelmingly, they did the latter, with the First, Second, Seventh, and D.C. Circuits upholding assault weapons bans on that basis.¹⁸⁸ Only the Fourth Circuit resolved the issue as a matter of coverage, finding that assault weapons and large-capacity magazines are “clearly most useful in military service.”¹⁸⁹ As a result, the common use test was often invoked, usually at the first step of the analysis,¹⁹⁰ but hardly ever used or elaborated. As Cody Jacobs observed at the time, “courts’ unwillingness to deeply engage with the common use test and tendency to either (A) rationalize their results through the second step of the analysis or (B) ignore the common use test altogether reflects the profound unworkability of the common use test and its disconnection from the central right recognized in *Heller*.”¹⁹¹

But even in the era of the two-part framework, when courts could resolve cases without heavy reliance on a common use inquiry, some fundamental workability problems began to emerge—including basic challenges in defining “common” and “use.” The difficulty of applying the common use test in practice should, under the Court’s own articulated standards, further weaken any claim it has to the respect of *stare decisis* by the conservative Justices’ own standards. In the course of overturning *Roe v. Wade* in *Dobbs v. Jackson Women’s Health*, the Court emphasized the importance of “workability,” meaning “whether the rule it imposes . . . can be understood and applied in a consistent and predictable manner.”¹⁹² Assessing a rule’s workability, according to *Dobbs*,

¹⁸⁴ *Heller*, 554 U.S. at 628.

¹⁸⁵ For more explanation of the coverage inquiry under the two-part framework, which relied heavily but not exclusively on history, see BLOCHER & MILLER, *supra* note 5, at 100-17.

¹⁸⁶ *Heller*, 554 U.S. at 630.

¹⁸⁷ Ruben & Blocher, *supra* note 94, at 1472.

¹⁸⁸ *Worman v. Healey*, 922 F.3d 26 (1st Cir. 2019); *N.Y. State Rifle & Pistol Ass’n v. Cuomo*, 804 F.3d 242 (2d Cir. 2015); *Friedman v. City of Highland Park*, 784 F.3d 406 (7th Cir. 2015); *Heller v. District of Columbia*, 670 F.3d 1244 (D.C. Cir. 2011).

¹⁸⁹ *Kolbe v. Hogan*, 849 F.3d 114, 137, 142-43 (4th Cir. 2017).

¹⁹⁰ Jacobs, *supra* note 90, at 251 (“The first step of the two-step test is where courts have usually most directly wrestled with the ‘common use’ test.”).

¹⁹¹ *Id.* at 251-52.

¹⁹² 597 U.S. 215, 281 (2022).

includes asking whether its application is “open to reasonable debate”¹⁹³ and whether it contains “vague terms,”¹⁹⁴ “has generated a long list of Circuit conflicts,”¹⁹⁵ or has led lower courts to “criticize[] the assignment while reaching unpredictable results.”¹⁹⁶ The common use test has fared far worse than *Roe* ever did in that regard,¹⁹⁷ and—as Part IV shows—*Bruen* has compounded the problem.

A. Common?

In keeping with the interpretation of “common” as “popular,” many judges and commentators have suggested that the common use test requires adding up how many of a particular “Arm” are in circulation.¹⁹⁸ This supposedly “objective and largely statistical inquiry”¹⁹⁹ hides a number of framing choices that give judges near-total discretion to find a weapon covered or not.

The most obvious is that *Heller* offers no account of how many weapons must be in circulation to be considered “common.” *Heller* was focused on handguns, of which there are perhaps 135 million in circulation.²⁰⁰ At the other end of the spectrum, *Heller* suggested that it would be “startling” if the Second Amendment protected machineguns, of which there are thought to be 234,718 in private circulation.²⁰¹ Perhaps the threshold lies between those two. But how, then, to make sense of the Supreme Court’s per curiam decision in *Caetano v. Massachusetts*, which has been read to suggest—as Justice Alito would have held—that stun guns are in common use despite there being only 200,000 of them in private hands?²⁰²

¹⁹³ *Id.* at 281.

¹⁹⁴ *Id.* at 283.

¹⁹⁵ *Id.* at 284.

¹⁹⁶ *Id.* at 285.

¹⁹⁷ Cf. Rebecca L. Brown, Lee Epstein, & Mitu Gulati, “If *Roe* Must Go . . . So Must *Bruen*,” Virginia Public Law and Legal Theory Research Paper No. 2024-57 (August 22, 2024) <https://ssrn.com/abstract=4934272>.

¹⁹⁸ See, e.g., *Duncan v. Bonta*, 133 F.4th 852, 860 (Bumatay, J., with Ikuta, Nelson, and VanDyke, JJ., dissenting) (looking to the total number of large-capacity magazines in national circulation); *Bianchi*, 111 F.4th at 518–19 (4th Cir. 2024) (Richardson, J., with Niemeyer, Agee, Quattlebaum, and Rushing, JJ., dissenting) (doing the same for AR-15s); *Hanson*, 120 F.4th at 269–70 (Walker, J., dissenting) (same).

¹⁹⁹ *New York State Rifle & Pistol Ass’n, Inc. v. Cuomo*, 804 F.3d 242, 256 (2d Cir. 2015); *Hollis v. Lynch*, 827 F.3d 436, 449 (5th Cir. 2016) (same); *Kolbe v. Hogan*, 849 F.3d 114, 153 (4th Cir. 2017) (Traxler, J., dissenting) (same).

²⁰⁰ John Berrigan, Deborah Azrael, & Matthew Miller, *The Number and Type of Private Firearms in the United States*, THE ANNALS OF THE AM. ACAD. OF POL. & SOC. SCI. (Nov. 2022), at 70, 71.

²⁰¹ BUREAU OF ALCOHOL, TOBACCO, AND FIREARMS, DATA AND STATISTICS, (2025) <https://www.atf.gov/resource-center/data-statistics>. Federal law does not outlaw the private ownership of machineguns, though it does impose stringent regulations. I.R.C. §§ 5801–5872.

²⁰² See *infra* Section III.C.

And even if a threshold number or percentage could be identified, how would a court know if it has been satisfied?²⁰³ Thanks in part to legal limitations adopted at the urging of gun rights advocates, it is impossible to know with any accuracy how many firearms are in private hands.²⁰⁴ The standard citations for those who favor the counting approach are the numbers reported by the National Shooting Sports Foundation²⁰⁵ and by Professor William English's "National Firearms Survey."²⁰⁶ The former is an industry group that regularly lobbies and litigates against class-of-arms restrictions²⁰⁷; the latter is an unpublished study with methodological problems.²⁰⁸

Why focus on how many weapons are in circulation, as opposed to how many people own them? English reports that 24.6 million Americans *have owned* an AR-15 or similarly styled rifle.²⁰⁹ Asking the question in this way, rather than whether they *currently* own such a weapon, introduces further complications for

²⁰³ Nell, *supra* note 33, at 22 ("Many decisions rely on platitudes like 'the most popular . . . rifle' or 'the overwhelming choice of Americans' to masquerade the flimsy pretenses of their theory.") (quoting *Bianchi*, 111 F.4th at 517 (Richardson, J., dissenting); *Duncan*, 113 F.4th at 902 (Bumatay, J., dissenting)); Samuel R. Vasilopoulos, *Trouble Bruen for Assault Weapon Bans: A Feature-Based Analysis of the Second Amendment*, 45 N. ILL. U. L. REV. 135, 159 (2024) ("Step one of the *Bruen* test will require more data collection based on features of firearms to be reliably applied across several weapons features, otherwise the finders of fact will have to rely on intuition or generalized data for the commonality of a firearm.").

²⁰⁴ James V. Grimaldi & Sari Horwitz, *Industry Pressure Hides Gun Traces, Protects Dealers from Public Scrutiny*, WASH. POST (Nov. 4, 2010); *For Most U.S. Gun Owners, Protection Is the Main Reason They Own a Gun*, PEW RSCH. CTR. (Aug. 16, 2023), <https://www.pewresearch.org/politics/2023/08/16/for-most-u-s-gun-owners-protection-is-the-main-reason-they-own-a-gun/> (noting that there is no "definitive data source from the government or elsewhere on how many American adults own guns").

²⁰⁵ NSSF RELEASES MOST RECENT FIREARM PRODUCTION FIGURES, NAT'L SHOOTING SPORTS FOUND. (Jan. 15, 2025), <https://www.nssf.org/articles/nssf-releases-most-recent-firearm-production-figures-2/>.

²⁰⁶ William English, "2021 National Firearms Survey: Updated Analysis Including Types of Firearms Owned" 33 (May 13, 2022), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4109494.

²⁰⁷ See, e.g., *Nat'l Shooting Sports Found. v. Att'y Gen. of New Jersey*, 80 F.4th 215, 217 (3d Cir. 2023); *Nat'l Shooting Sports Found. v. Bonta*, 718 F. Supp. 3d 1244 (S.D. Cal. 2024); *Nat'l Shooting Sports Found., Inc. v. Jones*, 840 F. Supp. 2d 310 (D.D.C. 2012), *aff'd*, 716 F.3d 200 (D.C. Cir. 2013).

²⁰⁸ Deborah Azrael et al., *A Critique of Findings on Gun Ownership, Use, and Imagined Use from the 2021 National Firearms Survey: Response to William English*, 78 SMU L. REV. 239 (2025). See also Mike McIntire & Jodi Kantor, *The Gun Lobby's Hidden Hand in the 2nd Amendment Battle*, N.Y. TIMES (June 18, 2024), <https://www.nytimes.com/2024/06/18/us/gun-laws-georgetown-professor.html>. For Prof. English's responses, see William English, "A Response to Critics of the 2021 National Firearms Survey," Georgetown McDonough School of Business Research Paper No. 4957840, (Sept. 16, 2024) <https://ssrn.com/abstract=4957840>; William English, *Antigun Activists Ambushed Me*, WALL ST. J. (June 26, 2024) <https://www.wsj.com/opinion/antigun-activists-ambushed-me-research-new-york-times-study>.

²⁰⁹ English, *supra* note 206, at 33.

the commonality inquiry.²¹⁰ Should temporary past possession of any length count toward the total? Even assuming the accuracy of that number, it amounts to 30% of all gun-owners, but less than 10% of all Americans (with other estimates suggesting closer to 5%²¹¹). Is that “common”? Most Americans own no guns at all, and—as with most other consumer goods—ownership seems to be concentrated in a minority of those who own many.²¹² If the average owner of an assault weapon has three such weapons,²¹³ then the NSSF figure of 30 million weapons (assuming all are still in circulation) could imply as few as 10 million owners—roughly 3% of the population.

By comparison, at least seven states—14% of the total, that is—had discretionary licensing regimes for concealed carry of handguns at the time *Bruen* was argued.²¹⁴ Those states included roughly 25% of the nation’s population and yet were dismissed in *Bruen* as outliers.²¹⁵ Thus, some approaches to common use would explicitly treat a weapon as being in common use when it is owned by fewer people than live in states that explicitly *prohibit* such weapons.²¹⁶

For that matter, what is the thing whose commonality is being measured? There is no natural way to define the “class”²¹⁷ of weapon whose commonality is being assessed—doing so will always depend on some rule of relevance that may be unarticulated.²¹⁸ Broadly defining the regulated class will point in the

²¹⁰ Azrael et al, *supra* note 208.

²¹¹ Emily Guskin, Aadit Tambe, & Jon Gerberg, *Why Do Americans Own AR-15s?*, THE WASH. POST (Mar. 27, 2023, 6:12 AM), <https://www.washingtonpost.com/nation/interactive/2023/american-ar-15-gun-owners/>.

²¹² PEW RSCH. CTR., FOR MOST U.S. GUN OWNERS, PROTECTION IS THE MAIN REASON THEY OWN A GUN 8, (August 2023), https://www.pewresearch.org/wp-content/uploads/sites/20/2023/08/PP_2023.08.16_gun-owners_REPORT.pdf; PEW RSCH. CTR., AMERICA’S COMPLEX RELATIONSHIP WITH GUNS 22 (June 22, 2017) <https://www.pewresearch.org/wp-content/uploads/sites/20/2017/06/Guns-Report-FOR-WEBSITE-PDF-6-21.pdf> (finding that a majority of gun owners own more than one gun and 27% own five or more).

²¹³ *Kolbe v. O’Malley*, F. Supp. 3d 768, 786 & n.23 (D. Md. 2014) (citing declaration testimony indicating that the average owner of an AR or AK platform rifle owns 3.1 such weapons).

²¹⁴ *Bruen*, 597 U.S. at 15 n.2. As late as the 1980s, *most* states had “may issue” licensing regimes or else outright prohibited concealed carry. Jacob D. Charles, *Securing Gun Rights by Statute: The Right to Keep and Bear Arms Outside the Constitution*, 120 MICH. L. REV. 581, 596 (2022).

²¹⁵ See generally Darrell A.H. Miller & Joseph Blocher, *Manufacturing Outliers*, 2022 SUP. CT. REV. 49.

²¹⁶ *Snope v. Brown*, 145 S. Ct. 1534, 1534 (2025) (Kavanaugh, J., respecting the denial of certiorari) (“AR–15s are legal in 41 of the 50 States, meaning that the States such as Maryland that prohibit AR–15s are something of an outlier.”).

²¹⁷ *United States v. Price*, 111 F.4th 392, 430–31 (4th Cir. 2024) (Richardson, J., dissenting) (“Each time the Supreme Court has discussed or applied this tradition, it has considered whether the banned weapons as a ‘class’ or ‘type’ are dangerous and unusual.”).

²¹⁸ See generally Joseph Blocher, *Bans*, 129 YALE L.J. 308 (2019) (considering this denominator problem at length and arguing for a focus on whether a law functionally impairs the relevant constitutional right).

direction of commonality; defining it narrowly will do the opposite.²¹⁹ Consider the frequent conflations of “assault weapons” with “semi-automatic rifles.”²²⁰ While assault weapons are typically semi-automatic (subject to modifications that can render them automatic²²¹), not all semi-automatic rifles are assault weapons.²²² Blurring the line between the two makes it easier to describe the “class” in broad terms—that is, as being in common use—even though not everything within that class is banned.²²³

Even the basic terminology defining the class is subject to much dispute—and, in keeping with a theme throughout this Article, some historical inaccuracies. Some gun rights advocates argue that the term “assault weapon” was invented by gun control advocates to demonize a class of semiautomatic rifles. Justice Thomas, for example, has explicitly claimed as much:

Prior to 1989, the term ‘assault weapon’ did not exist in the lexicon of firearms. It is a political term, developed by anti-gun publicists to expand the category of ‘assault rifles’ so as to allow an attack on as many additional firearms as possible on the basis of undefined ‘evil’ appearance.²²⁴

Forms of this claim are common and are generally invoked to support a broad reading of “Arms” as a counter to political bias.²²⁵

The factual predicates of this claim are incorrect. Even a cursory search shows that the term “assault weapon” *did* “exist in the lexicon of firearms . . . [p]rior to 1989”²²⁶ and that it was not simply a “political term, developed by anti-gun publicists.” The existence of the 1986 *Gun Digest Buyer’s Guide to Assault*

²¹⁹ Vasilopoulos, *supra* note 203, at 139 (“The classification of ‘assault weapon’ is a fundamentally ineffective category without a uniform or a practical meaning, and thus each provision of the law and regulation of a particular firearm must be considered individually.”).

²²⁰ Dennis P. Chapman, *Are Semiautomatic Rifles “Dangerous and Unusual” Weapons?*, 54 U. TOL. L. REV. 191 (2023); Smith, “Assault Weapon” Bans, *supra* note 44, at 357-59.

²²¹ *Bevis v. City of Naperville, Illinois*, 85 F.4th 1175, 1195 (7th Cir. 2023) (“[T]he AR-15 has only semiautomatic capability (unless the user takes advantage of some simple modifications that essentially make it fully automatic).”).

²²² Volokh, *supra* note 111, at 1484 (“The laws generally define assault weapons to be a set of semiautomatic weapons[.]”).

²²³ See, e.g., *Heller v. District of Columbia (Heller II)*, 670 F.3d 1244, 1287 (D.C. Cir. 2011) (Kavanaugh, J., dissenting) (citations omitted).

²²⁴ *Stenberg v. Carhart*, 530 U.S. 914, 1001 n.16 (2000) (Thomas, J., dissenting) (quoting Bruce H. Kobayashi & Joseph E. Olsen, In Re 101 California Street: *A Legal and Economic Analysis of Strict Liability for the Manufacture and Sale of “Assault Weapons,”* STAN. L. & POL’Y REV., Winter 1997, at 41, 43) (internal quotation marks omitted)).

²²⁵ See, e.g., Robert J. Cottrol & George A. Mocsary, *Guns, Bird Feathers, and Overcriminalization: Why Courts Should Take the Second Amendment Seriously*, 14 GEO. J.L. & PUB. POL’Y 17, 35 (2016); Krawczyk & Ambler, *supra* note 78, at 816-17; Smith, “Assault Weapon” Bans, *supra* note 44, at 363; Jacob Sullum, ‘Assault Weapons,’ Explained, REASON (June 2018); Gregory Wallace, “Assault Weapon” Myths, 43 S. ILL. U. L.J. 193, 198 (2018).

²²⁶ See, e.g., THE GUN DIGEST BOOK OF ASSAULT WEAPONS (Jack L. Smith, ed. 1986).

Weapons is one easy example. As the editor of a later edition of that book explained:

The popularly held idea that the term ‘assault weapon’ originated with anti-gun activists is wrong. The term was first adopted by manufacturers, wholesalers, importers and dealers in the American firearms industry to stimulate sales of certain firearms that did not have an appearance that was familiar to many firearms owners. The manufacturers and gun writers of the day needed a catchy name to identify this new type of gun.²²⁷

In marketing this new type of gun, the industry heavily emphasized their military appearance and capability.²²⁸ Justice Thomas’s sole source was a law review article, which in turn relies on an unsigned editorial in the *New York Post* which—other than using scare quotes around “assault weapon”—provides no support for any substantive proposition.²²⁹ None of this means that assault weapons *should* be prohibited, nor even that the label “assault weapons” is accurate or unbiased. But the easy proliferation of such unsubstantiated claims both demonstrates how shaky the doctrinal edifice has become and distracts from the questions that gun-owners and regulators actually care about, like self-defense and public safety.

Another timing-related complication for the simplistic counting approach is that the constitutional coverage of a particular arm will depend on when a case happens to be brought challenging its regulation. If the government moves quickly and successfully to ban an arm, it will never become common and thus constitutionally covered.²³⁰ But even short of that extreme situation, the commonality of a weapon—and thus its constitutional status—will change over time, such that it might drift in or out of coverage. For example, many judges (and Justices) have suggested that restrictions on high-capacity magazines—generally meaning those accepting twelve or more bullets—are unconstitutional because such magazines are now industry standard.²³¹ But as recently as the

²²⁷ THE GUN DIGEST BUYER’S GUIDE TO ASSAULT WEAPONS 11 (Philip Peterson, ed. 2008).

²²⁸ See, e.g., *Soto v. Bushmaster Firearms Int’l, LLC*, 331 Conn. 53, 85-116 (2019); RYAN BUSSE, *GUNFIGHT: MY BATTLE AGAINST THE INDUSTRY THAT RADICALIZED AMERICA* (2021); TOM DIAZ, *THE LAST GUN* 159-60 (2013).

²²⁹ See *The Assault Rifle Smokescreen*, N.Y. POST 30 (July 18, 1991).

²³⁰ See, e.g., *Heller*, 554 U.S. at 721 (Breyer, J., dissenting) (“On the majority’s reasoning, if tomorrow someone invents a particularly useful, highly dangerous self-defense weapon, Congress and the States had better ban it immediately, for once it becomes popular Congress will no longer possess the constitutional authority to do so.”); Craig S. Lerner & Nelson Lund, *Heller and Nonlethal Weapons*, 60 HASTINGS L.J. 1387, 1393 (2009) (“Justice Scalia’s test empowers Congress to create its own exceptions to the Second Amendment so long as the Supreme Court waits awhile before it checks to see whether particular weapons are in common civilian use.”).

²³¹ See, e.g., *Duncan v. Bonta*, 133 F.4th 852, 892 (9th Cir. 2025) (Bumatay, J., dissenting); *Duncan v. Bonta*, 695 F.Supp.3d 1206, 1232 (S.D. Cal. 2023); *Bevis v. City of Napierville*, 85

1990s, the standard magazine was apparently in the single digits, even for police officers,²³² and the federal Violent Crime Control and Law Enforcement Act of 1994 prohibited the sale of magazines holding more than ten rounds until it was allowed to expire in 2004.²³³ If the Court had taken a high capacity magazine case at that time, the government would likely have prevailed under the common use test, the prohibition could have stayed in place, and such magazines would remain constitutionally uncovered today. Can it really be that the *originalist* or “plain text” meaning of the Constitution has changed that much in forty years?²³⁴ Conversely, the muskets that were arguably “in common use” in 1791 are much less popular today. Is the quintessential Founding era firearm now uncovered by the Second Amendment?

Popular practice is surely relevant to claims of constitutional coverage. But rarely is head-counting alone enough to establish a bright-line constitutional rule like the common use test and it is an especially tricky line of argument for those who claim that the common use test is a matter of originalist reasoning or “plain text.”

B. Use?

The other word in the common use test presents additional complications that are generally less recognized than those invoking the word “common.” What does it mean to “use” a gun? Or, in *Heller*’s amended formulation, what does it mean to use a gun “for lawful purposes”²³⁵?

Heller identifies self-defense as the “core interest” protected by the Second Amendment,²³⁶ and *Bruen* appears to double down, recasting the right to keep and bear arms as the “individual right to armed self-defense.”²³⁷ One obvious way to guide the “use” inquiry, then, would be to focus on use for self-defense. The Seventh Circuit, for example, has suggested that challengers must prove that a class of arms is commonly used by ordinary people in the home for self-defense.²³⁸ The Fourth Circuit has similarly indicated that use might be limited to “instances of ‘active employment’ of the weapon” and “perhaps only active

F.4th 1175,1207 (7th Cir. 2023) (Brennan, J., dissenting); *Hanson v. District of Columbia*, 120 F.4th 223, 270 (D.C. Cir. 2024) (Walker, J., dissenting).

²³² See BUREAU OF ALCOHOL TOBACCO AND FIREARMS, DEPARTMENT OF THE TREASURY STUDY ON THE SPORTING SUITABILITY OF MODIFIED SEMIAUTOMATIC ASSAULT RIFLES 24 (1998) (quoting a representative of national police officers’ organization: “The six-shot .38 caliber service revolver, standard law enforcement issue for years, is just no match against a criminal armed with a semiautomatic assault weapon.”).

²³³ Violent Crime Control and Law Enforcement Act of 1994, Pub.L. No. 103–322, tit. XI, subtit. A § 110102(b), 108 Stat. 1796, 1997.

²³⁴ Jacobs, *supra* note 90, at 266.

²³⁵ 554 U.S. at 624–25 (internal citations omitted).

²³⁶ 554 U.S. at 630.

²³⁷ *Bruen*, 597 U.S. at 21.

²³⁸ *Bevis*, 85 F. 4th at 1194.

employment in self-defense.”²³⁹

On the other side of the spectrum, proponents of broad gun rights tend to treat “use” as meaning something like “possession for a purpose”—a reframing that significantly broadens the activity whose commonality is being assessed.²⁴⁰ Dissenting from a Fourth Circuit decision upholding Maryland’s prohibition on AR-15-style weapons, Judge Julius Richardson cited the William English survey reporting that “almost 62% of AR-15 owners point to self-defense of the home as their primary reason for owning their weapons.”²⁴¹ According to Judge Richardson, “in possessing the arm, those citizens are ‘using’ it as a form of insurance. The same can be said for those who possess firearms to be prepared in the event of hostile invasion or tyrannical government.”²⁴² Other judges have said the same for high-capacity magazines.²⁴³ But if high-capacity magazines are indeed owned or have been owned by millions of Americans, then it is all the more notable that plaintiffs challenging restrictions on those magazines can offer “only limited anecdotal evidence of LCMs actually being used in self-defense.”²⁴⁴ If fewer than one in a million—or a hundred thousand or ten thousand—actually deploy their weapon in self-defense, then how valuable is the “insurance”?

Perhaps the point is simply that some people *feel* more secure owning assault weapons, regardless of active “use.” This is a legitimate claim, but only if the doctrine also recognizes (as many gun rights advocates do not) the legitimacy of the community’s interest in the same feelings of safety.²⁴⁵ And that leads

²³⁹ *Bianchi*, 111 F. 4th at 461.

²⁴⁰ Smith, *Dangerous, but Not Unusual*, *supra* note 35, at 629 (“The mere possession of an arm is enough to establish its use, and lower courts are wrong to require a party challenging a modern-day firearms restriction to make a statistical showing of how frequently a challenged arm is actually fired in self-defense.”).

²⁴¹ *Bianchi*, 111 F.4th at 518-19 (Richardson, J. dissenting). Perhaps the remaining 38% should be removed from the baseline figure of AR-15 ownership, reducing the total from 24.6 million to 15.3 million.

²⁴² *Id.* at 518 n.60 (Richardson, J. dissenting). *See also Hanson*, 120 F.4th at 270 n.180 (Walker, J., dissenting) (citing the same figures).

²⁴³ *Duncan*, 133 F.4th at 902 (Bumatay, J., dissenting) (“Plaintiffs assert, and California doesn’t contradict, that nearly 40 million Americans own or have owned magazines with capacity for more than ten rounds—that’s more than 10% of the Nation’s total population and about half of all American gun owners. Given this widespread ownership, they are necessarily used for lawful purposes.”) (citation omitted); *Ass’n of New Jersey Rifle & Pistol Clubs, Inc. v. Att’y Gen. New Jersey*, 910 F.3d 106, 130 (3d Cir. 2018) (Bibas, J., dissenting) (“People commonly possess large magazines to defend themselves and their families in their homes. That is *exactly why* banning them burdens the core Second Amendment right. For any other right, that would be the end of our analysis.”); *Hanson*, 120 F. 4th at 270 n.180 (Walker, J., dissenting) (“What matters ... is that millions of law-abiding Americans have chosen to arm themselves with plus-ten magazines to use for a lawful purpose.”).

²⁴⁴ *Oregon Firearms Fed’n v. Kotek*, 682 F. Supp. 3d 874, 895-96 (D. Or. 2023).

²⁴⁵ Joseph Blocher & Reva B. Siegel, *When Guns Threaten the Public Sphere: A New Account of Public Safety Under Heller*, 116 NW. U. L. REV. 139, 180-201 (2021).

naturally to the relevance of dangerousness in the common use test.

C. “Dangerous”? “Unusual”?

As the two-part framework came to dominate Second Amendment adjudication in the decade after *Heller*—including in courts’ casual approach to “common use” during that time—the Supreme Court repeatedly declined to provide additional methodological guidance, including with regard to how courts should assess which weapons are “dangerous and unusual” and thereby subject to prohibition. In only one case, a two-page *per curiam* decision, did the Court so much as acknowledge the common use test, provoking a concurring opinion from Justice Alito (joined by Justice Thomas) that some have treated as authoritative with regard to the meaning of “dangerous” and “unusual.”²⁴⁶

That case was *Caetano v. Massachusetts*, a Second Amendment challenge to a state statute prohibiting the possession of “electrical” weapons such as stun guns.²⁴⁷ The Massachusetts Supreme Judicial Court had concluded that stun guns were uncovered by the Second Amendment because they were not “in common use at the time of the Second Amendment’s enactment”²⁴⁸ and that they are “unusual” because they are a “thoroughly modern invention.”²⁴⁹ The Justices rejected these reasons as being inconsistent with *Heller*’s admonition that the Second Amendment covers forms of modern weaponry. The Massachusetts court also found “nothing in the record to suggest that [stun guns] are readily adaptable to use in the military,”²⁵⁰ an approach to coverage that, as the Justices noted in *Caetano*, conflicted with *Heller*’s rejection of the proposition “that only those weapons useful in warfare are protected.”²⁵¹

The Court’s *per curiam* decision in *Caetano* was just a few paragraphs long—shorter even than *Miller*—and, other than rejecting the Massachusetts court’s outlier approach, did not discuss the common use test. But in a lengthy concurrence joined by Justice Thomas, Justice Alito opined on the proper meaning of “dangerous and unusual” and “common use.” As to the former, he wrote:

As the *per curiam* opinion recognizes, this is a conjunctive test: A weapon may not be banned unless it is *both* dangerous *and* unusual. Because the Court rejects the lower court’s conclusion that stun guns are “unusual,” it does not need to consider the

²⁴⁶ See, e.g., *VanDerStok v. Garland*, 86 F.4th 179, 184 n.6 (5th Cir. 2023); *Price*, 111 F.4th at 415 (Quattlebaum, J., with Rushing, J. concurring); *id.* at 427–28 (Richardson, J., dissenting); *Hanson*, 120 F.4th at 266 (Walker, J., dissenting); *Duncan*, 133 F.4th at 860 (Bumatay, J., with Ikuta, Nelson, and VanDyke, JJ., dissenting).

²⁴⁷ 577 U.S. 411 (2016).

²⁴⁸ 26 N.E.3d at 693.

²⁴⁹ 26 N.E.3d at 693–694.

²⁵⁰ 26 N.E.3d at 694.

²⁵¹ *Caetano*, 577 U.S. at 412 (citing *Heller*, 554 U.S. at 624–625).

lower court’s conclusion that they are also “dangerous.”²⁵² It is unclear why Justice Alito believed that the *per curiam* opinion “recognize[d]” this reading of the common law principle. Aside from quoting *Heller*, nothing in the two pages of the opinion says as much.²⁵³ And yet Alito’s opinion has frequently been treated as if it were controlling on this point.²⁵⁴

Justice Alito’s concurrence in *Caetano* was decidedly non-originalist,²⁵⁵ and, as to common use in particular, it emphasized that “the pertinent Second Amendment inquiry is whether [a class of weapons] are commonly possessed by law-abiding citizens for lawful purposes *today*.”²⁵⁶ Though the Court’s *per curiam* opinion made no pretense of conducting its own common use analysis or establishing a standard for doing so, Justice Alito noted that there are approximately 200,000 privately owned stun guns and that they are legal in forty five states, suggesting that these factors make them in common use.²⁵⁷ Some judges and commentators have invoked the former number as a threshold, arguing for example that short-barreled rifles and silencers must be covered by the Second Amendment since there are more of them in circulation than there are stun guns.²⁵⁸ This threshold approach raises the same workability concerns as discussed in Section II.A.

Justice Alito’s concurrence in *Caetano* is notable for at least two other reasons. One is his conclusion that the “relative dangerousness of a weapon is irrelevant when the weapon belongs to a class of arms commonly used for lawful purposes,”²⁵⁹ thereby rejecting the notion that it should matter whether a weapon is “dangerous” in the sense of, for example, being “designed and constructed to produce death or great bodily harm.”²⁶⁰ This sets up the notion that commonality alone renders a weapon immune to regulation.²⁶¹ Minimizing the relevance of dangerousness in this fashion is in keeping with Court’s ongoing

²⁵² *Id.* at 417 (Alito, J. concurring).

²⁵³ And, as discussed *supra* in Part I.C, *Heller* need not be read as establishing “dangerous and unusual” as a conjunctive test.

²⁵⁴ *Supra* note 246 and sources cited therein.

²⁵⁵ Krawczyk & Ambler, *supra* note 78, at 822 (“Most notably, the *Caetano* concurrence did not employ the typical originalist toolkit. Absent were the Founding-Era dictionaries, writings, and cases that could have shed light on what ‘dangerous and unusual’ meant to those who ratified the Second Amendment.”).

²⁵⁶ *Caetano*, 577 U.S. at 420 (Alito, J., concurring).

²⁵⁷ *Id.*

²⁵⁸ See, e.g., Oliver Krawczyk, Comment, *Dangerous and Unusual: How an Expanding National Firearms Act Will Spell Its Own Demise*, 127 DICK. L. REV. 273, 295, 299 (2022).

²⁵⁹ *Caetano*, 577 U.S. at 418 (Alito, J., concurring).

²⁶⁰ *Id.* (Alito, J., concurring). Interestingly, Justice Alito accepted that dangerousness “may be appropriate for applying statutes criminalizing assault with a dangerous weapon. But it cannot be used to identify arms that fall outside the Second Amendment.” *Caetano*, 577 U.S. at 420 (Alito, J., concurring) (internal citation omitted). The stated reason for this disjunction was the common use test.

²⁶¹ See *infra* Section IV.C.

effort to eliminate doctrines that involve transparent means-end analysis²⁶²—a campaign that helps explain *Bruen*’s adoption of a historical-analogical test.

Justice Alito’s *Caetano* concurrence prefigured *Bruen* in another important way as well: It invoked the notion of the Second Amendment being treated as a second class right, describing the lower court as “def[y]ing” *Heller*²⁶³ and the right to keep and bear arms as being at “the mercy of state authorities who may be more concerned about disarming the people than about keeping them safe.”²⁶⁴ That theme became especially notable as the Court was presented with (and denied) a variety of cert petitions involving challenges to state prohibitions on assault weapons and high-capacity magazines—laws that had been universally upheld by the federal courts under the pre-*Bruen* two-part framework. These denials triggered multiple dissents authored or joined by Justices Scalia, Thomas, and Alito.²⁶⁵

Litigants, scholars, and some lower court judges seized on these dissents, often arguing that the adoption of a test rooted in history and tradition was necessary to correct this second-class treatment.²⁶⁶ Those arguments would come to a head in *Bruen*.

IV. COMMON USE UNDER *BRUEN*

As noted above, *Heller* did not clearly articulate a test for evaluating the constitutionality of gun regulations, expressly leaving that task to lower courts, who adopted the two-part framework. But, in an opinion by Justice Thomas, *Bruen* rejected that framework’s use of means-end analysis, holding that modern gun laws must instead be evaluated based on whether they are consistent with this nation’s historical tradition of weapons regulation.²⁶⁷ Applying that framework, the majority struck down New York’s “may issue” licensing regime for the concealed carry of handguns.²⁶⁸

Bruen was not a class-of-arms case; the Court acknowledged that the

²⁶² See *supra* note 10 and sources cited therein.

²⁶³ *Caetano*, 577 U.S. at 414 (Alito, J., concurring).

²⁶⁴ *Id.* at 422 (Alito, J., concurring).

²⁶⁵ *Friedman v. City of Highland Park, Ill.*, 577 U.S. 1039, 1039 (2015) (Thomas, J., joined by Scalia, J., dissenting from the denial of certiorari); *Harrel v. Raoul*, 144 S.Ct. 2491 (2024) (Thomas, J., respecting the denial of certiorari) (Alito, J., would grant the petitions for writs of certiorari).

²⁶⁶ Joseph Blocher & Eric Ruben, “Second-Class” Rhetoric, Ideology, and Doctrinal Change, 110 GEO. L.J. 613, 647-48 (2022).

²⁶⁷ *Bruen*, 597 U.S. at 19-22. For explanation and exploration of *Bruen*’s analogical method, see Joseph Blocher & Reva B. Siegel, *Guided by History: Protecting the Public Sphere from Weapons Threats Under Bruen*, 98 N.Y.U. L. REV. 1795, 1825-30 (2023); Joseph Blocher & Eric Ruben, *Originalism-by-Analogy and Second Amendment Adjudication*, 133 YALE L.J. 99 (2023).

²⁶⁸ This itself represented an interesting question of coverage, since *Heller* specifically noted that concealed carry was historically subject to total prohibition. 554 U.S. at 613, 626, 629.

“common use” of handguns was not in dispute.²⁶⁹ And yet the majority went on to emphasize and further expand *Heller*’s broad and modernist definition of arms:

We have already recognized in *Heller* at least one way in which the Second Amendment’s historically fixed meaning applies to new circumstances: Its reference to “arms” does not apply “only [to] those arms in existence in the 18th century.”²⁷⁰

Justice Thomas continued, “even though the Second Amendment’s definition of ‘arms’ is fixed according to its historical understanding, that general definition covers modern instruments that facilitate armed self-defense.”²⁷¹ Continuing the trend of elaborating the “plain text” of the Amendment so as to encompass more weapons, *Bruen* thus transmuted *Heller*’s “all instruments that constitute bearable arms” into the even-broader “all instruments that facilitate self-defense.” Some judges have since relied on that language to conclude that high-capacity magazines—which are not weapons in and of themselves—are nonetheless “unquestionably ‘Arms’ under the Second Amendment” because they are “instruments that are necessary to the operation of most modern firearms for self-defense.”²⁷²

As this Part explains, despite *Bruen*’s purported emphasis on history, courts and commentators have continued to use the common use test as the standard method in class-of-arms cases, often citing *Bruen*’s emphasis that the “general definition” of arms extends to “modern instruments that facilitate self-defense.”²⁷³ The effect has been to extend Second Amendment coverage to modern arms while limiting modern forms of regulation, enabling judges to strike down democratic lawmaking while invoking populist rhetoric about “the People”—defined for these purposes as the minority of Americans who own guns or the even smaller minority who own assault weapons or high capacity magazines.

A. Common Use as an Escape from Historical Tradition

Commentators have rightly criticized *Bruen*’s historical-analogical test for disabling contemporary communities from responding to distinctly modern challenges of gun violence.²⁷⁴ But freezing *all* Second Amendment questions in 1791 or 1868 would also have the rights-restrictive result of limiting Second

²⁶⁹ *Bruen*, 597 U.S. at 32 (“Nor does any party dispute that handguns are weapons ‘in common use’ today for self-defense.”).

²⁷⁰ *Id.* at 28 (citing *Heller*, 554 U.S. at 582).

²⁷¹ *Id.* (citing *Caetano*, 577 U.S. at 411-412 (per curiam)).

²⁷² See, e.g., *Duncan*, 133 F.4th at 896 (Bumatay, J., dissenting).

²⁷³ *Bruen*, 597 U.S. at 28.

²⁷⁴ See, e.g., Albert W. Alschuler, *Twilight-Zone Originalism: The Peculiar Reasoning and Unfortunate Consequences of New York State Pistol & Rifle Association v. Bruen*, 32 WM. & MARY BILL. RTS. J. 1, 67-104 (2023); Charles, *Dead Hand of a Silent Past*, *supra* note 30.

Amendment coverage to “muskets and sabers,” which the Court in *Rahimi* rejected, emphasizing the need to look for “principles” in historical tradition.²⁷⁵ One unfortunate attempt at resolving this tension between historical fixity and contemporary expansion has been to take a flexible approach to modern forms of rights claims but a rigid approach to modern regulations, for example by describing the right to keep and bear arms at a high level of generality (thus enabling growth) while describing regulatory traditions narrowly (thus making historical comparators easier to distinguish).²⁷⁶

The common use test has been a particularly useful doctrinal tool for this kind of asymmetric updating, since it ties the scope of Second Amendment rights to contemporary ownership—thus enabling the right’s expansion while minimizing contemporary regulatory interests. With regard to class-of-arms claims, *Bruen* is quite explicit, suggesting that rights-expansive modern developments render historical evidence irrelevant:

Whatever the likelihood that handguns were considered “dangerous and unusual” during the colonial period, they are indisputably in “common use” for self-defense today. They are, in fact, “the quintessential self-defense weapon.” Thus, even if these colonial laws prohibited the carrying of handguns because they were considered “dangerous and unusual weapons” in the 1690s, they provide no justification for laws restricting the public carry of weapons that are unquestionably in common use today.²⁷⁷

The crucial move here is the simultaneous endorsement of societal change in one direction (a class of arms becoming more popular and thus more immune to regulation) and steadfast rejection of societal change in another (arms becoming more dangerous and thus potentially more regulable). And indeed *Bruen* itself elsewhere indicated that a “more nuanced”—that is, more forgiving—historical approach is appropriate for modern laws addressing “unprecedented societal concerns or dramatic technological changes.”²⁷⁸ One might think that the astounding changes in weapons’ lethality since the Founding²⁷⁹ should trigger this “more nuanced” approach.

Some gun rights advocates and scholars have sidestepped the latter argument by suggesting that firearms have not actually changed much over

²⁷⁵ *Rahimi*, 602 U.S. at 692.

²⁷⁶ Joseph Blocher & Reva Siegel, *Gun Rights and Domestic Violence in Rahimi—Whose Traditions Does the Second Amendment Protect?*, BALKINIZATION (Oct. 31, 2023), <https://balkin.blogspot.com/2023/10/gun-rights-and-domestic-violence-in.html>.

²⁷⁷ *Bruen*, 597 U.S. at 4-5.

²⁷⁸ *Id.* at 27 (distinguishing between review of laws addressing “unprecedented societal concerns or dramatic technological changes” and those addressing problems with which the amendment’s framers were familiar).

²⁷⁹ DeLay, *supra* note 153, at 35-46; Miller & Tucker, *supra* note 89, at 2510-11. See also *Bianchi*, 111 F.4th at 464-72 (describing remarkable changes in weapons technology).

time²⁸⁰ or even that the Founders would have known or at least foreseen automatic weapons because some repeat-firing arms were in existence at the time.²⁸¹ In post-*Bruen* arguments, this is typically accomplished through levels of generality moves—describing arms and societal problems at a very abstract level so as to suggest their connection to the Founding era.²⁸² This keeps new weapons within the category of “arms” and avoids the “nuanced approach” by denying that “dramatic technological changes” have occurred. But it also reflects what historian Brian DeLay calls a “myth of continuity”²⁸³ that draws spurious connections between historical and modern weapons. And it is hard to imagine that these advocates would accept the symmetric suggestion that muskets are an adequate substitute for AR-15s.

Another move is to simply argue that the common use test is a rule of decision that trumps the “dramatic technological changes” principle.²⁸⁴ The idea here is to rely entirely on the purported precedential force of *Heller*.²⁸⁵ But it is nevertheless hard to fit the common use test into *Bruen*’s historical-analogical methodology, as the following Section shows.

B. Common Use as an Element of “Plain Text” or of “Historical Tradition”

Even as it rejected the two-part framework as having “one step too many,”²⁸⁶ *Bruen* has been read to create its own two-part test:

²⁸⁰ See, e.g., Clayton E. Cramer & Joseph Edward Olson, *Pistols, Crime, and Public Safety in Early America*, 44 WILLAMETTE L. REV. 699, 716 (2008) (“It is certainly true that firearms technology has advanced since 1791—but not as much as some would like to think.”); Mark W. Smith, *What Part of “In Common Use” Don’t You Understand?: How Courts Have Defied Heller in Arms-Ban Cases—Again*, 41 HARV. J.L. & PUB. POL’Y PER CURIAM 9 n.52 (2023) [hereinafter Smith, *What Part*] (“There have been no dramatic technological changes to firearms in the past century.”).

²⁸¹ *Duncan v. Becerra*, 970 F.3d 1133, 1147 (9th Cir. 2020) (“Semi-automatic and multi-shot firearms were not novel or unforeseen inventions to the Founders, as the first firearm that could fire more than ten rounds without reloading was invented around 1580. Rapid fire guns, like the famous Puckle Gun, were patented as early as 1718 in London.”), *reh’g en banc granted, opinion vacated*, 988 F.3d 1209 (9th Cir. 2021), *reh’g en banc sub nom.* *Duncan v. Bonta*, No. 19-55376, 2021 WL 5577267 (9th Cir. Nov. 30, 2021). But see DeLay, *supra* note 153, at 24-26 (2025) (“The Puckle Gun has become a fixture in the myth of continuity, invoked frequently in contemporary challenges to assault weapons bans and magazine restrictions. But on closer inspection it exemplifies just how strange and flawed most examples of early modern repeat-fire weapons really were.”).

²⁸² See, e.g., Smith, *Dangerous, but Not Unusual*, *supra* note 35, at 615 n.77 (“Humans committing violence against each other has been a societal problem going back to the 18th century, and all the way back to at least when Cain killed Abel.”). See also Blocher & Siegel, *The Ambitions of History and Tradition*, *supra* note 10 (collecting sources).

²⁸³ DeLay, *supra* note 153.

²⁸⁴ Smith, *Dangerous, but Not Unusual*, *supra* note 35, at 632–33 (“Arguments about ‘dramatic technological changes’ cannot affect the ‘in common use’ test mandated by *Heller*.”).

²⁸⁵ Smith, *What Part*, *supra* note 280, at 5.

²⁸⁶ *Bruen*, 597 U.S. at 18-19.

In keeping with *Heller*, we hold that when the Second Amendment’s plain text covers an individual’s conduct, the Constitution presumptively protects that conduct. To justify its regulation, the government may not simply posit that the regulation promotes an important interest. Rather, the government must demonstrate that the regulation is consistent with this Nation’s historical tradition of firearm regulation.²⁸⁷

Some read this to hold that the Second Amendment’s “plain text” provides the text for coverage and that the historical-analogical method provides the text for protection;²⁸⁸ the Court’s later decision in *Wolford* seems to confirm as much. This is problematic, given that text and history cannot be neatly separated in this way either in theory²⁸⁹ or in practice. Indeed, *Bruen* describes itself as requiring a test “rooted in the Second Amendment’s text, as informed by history”²⁹⁰ and discusses common use at both steps of its own analysis.²⁹¹ But in the wake of *Bruen* and the effective push of all “rights” questions into the plain text analysis and all “regulation” questions into the historical analysis, textual arguments have undoubtedly taken on greater importance.

It is beyond the scope of this Article to fully chronicle the Court’s rewriting of the Amendment’s “plain text”—it has taken this long simply to unpack its treatment of “Arms”—but even a casual reading of the opinion should suffice to show that *Bruen*’s account of the text is anything but “plain.” To take one obvious example, *Bruen* refers to the Second Amendment as protecting an “individual right to armed self-defense.”²⁹² Of those words, only “right” and “to” appear in the Second Amendment. And even if one reads a self-defense core into that text, it seems “plain” that acts of armed self-defense do not fall within the Amendment’s verbiage. To pull a trigger or brandish a weapon is not to “keep” or “bear” under *the Court’s own definitions* of those terms as “to have” and “to carry.”²⁹³

This is not simply a matter of abstract methodological dispute. One of the most significant and possibly underappreciated features of the post-*Bruen* legal landscape is the allocation of analysis and burdens between its first and second steps—and, in particular, determining which questions and evidence are governed by “plain text” (step one) and which are governed by analogy to history and tradition (step two). This choice is incredibly significant—often outcome-determinative—because the burden of persuasion shifts to the

²⁸⁷ *Id.* at 17.

²⁸⁸ See Alicea, *supra* note 36, at 15-18.

²⁸⁹ See *supra* notes 71-72 and accompanying text.

²⁹⁰ *Bruen*, 597 U.S. at 19.

²⁹¹ McWilliam, *supra* note 55, at 1 (“*Bruen* raised the common use standard in both the textual and historical steps, with relatively little language devoted to it in both instances.”).

²⁹² *Bruen*, 597 U.S. at 21.

²⁹³ *Id.* at 32 (quoting *Heller* 554 U.S. at 592 (2008)). See also Joseph Blocher, *Safe Storage Laws and Self Defense from Heller to Bruen*, 102 N.C. L. REV. 1353 (2024).

government at the second step.²⁹⁴ If the possession of “[w]eapons of offence, or armour of defence”²⁹⁵ is enough to shift the burden to the government, then the Second Amendment flips the standard presumption of constitutionality for legislation. This would render all weapons regulations unconstitutional unless the government can produce historical evidence, under the confines of a briefing schedule, sufficient to convince a judge. And as the following Section shows, some have gone further and concluded that common use renders a weapon immune from regulation.

But the common use test does not fit neatly into either of *Bruen*’s two steps. It certainly does not derive from the plain text of the Amendment, as Part I showed. And as Part II showed, neither was it born of history. It is a distinctly modernist test that has been interpreted by lower courts as calling for contemporary evidence of gun ownership, which is neither a matter of “plain text” nor historical analogy.

Thus far, the three courts of appeal to have resolved the question (the Fourth, Seventh, and D.C. Circuits) have held that common use applies at *Bruen*’s first step,²⁹⁶ while the First and Ninth Circuits have essentially avoided the question.²⁹⁷ All of these circuits had earlier upheld assault weapons prohibitions under the two-part framework, with only the Fourth Circuit doing so as a matter of coverage.²⁹⁸ In other words, the emphasis on coverage questions has grown significantly in the wake of *Bruen*. But a substantial number of judges have argued in concurrences or dissents that common use is part of the second step, where the burden is on the government.²⁹⁹ Unsurprisingly, these doctrinal choices correlate strongly with case outcomes—all of the judges who

²⁹⁴ For more on *Bruen*’s burden-shifting test, see Kevin G. Schascheck II, *Recalibrating Bruen: The Merits of Historical Burden-Shifting in Second Amendment Cases*, 11 BELMONT L. REV. 38 (2023).

²⁹⁵ See *supra* notes 82-88 and accompanying text (discussing *Heller*’s broad approach to describing “Arms”).

²⁹⁶ See *United States v. Price*, 111 F.4th 392, 400–02 (4th Cir. 2024) (en banc); *Bevis v. City of Naperville*, 85 F.4th 1175, 1192–94 (7th Cir. 2023); *Hanson v. District of Columbia*, 120 F.4th 223, 232 (D.C. Cir. 2024). The Fifth Circuit also applied common use at step one in its since vacated decision in *United States v. Rahimi*, 61 F.4th 443, 454 (5th Cir. 2024), *rev’d and remanded*, 602 U.S. 680 (2024).

²⁹⁷ *Ocean State Tactical v. Rhode Island*, 95 F.4th 38 (1st Cir. 2024); *Capen v. Campbell*, 134 F.4th 660 (1st Cir. 2025). Compare *United States v. Alaniz*, 69 F.4th 1124, 1128 (9th Cir. 2023) (step one) with *Teter v. Lopez*, 76 F.4th 938, 949–50 (9th Cir. 2023) (step two), *vacated and reh’g en banc granted*, 93 F.4th 1150 (9th Cir. 2024) and *Duncan v. Bonta*, 133 F.4th 852, 860 (9th Cir. 2025) (unclear).

²⁹⁸ See *supra* notes 187-190 and cases cited therein.

²⁹⁹ See *Price*, 111 F.4th at 409–10 (Niemeyer, J., concurring); *id.* at 415 (Quattlebaum, J., with Rushing, J. concurring); *id.* at 427–28 (Richardson, J., dissenting); *Bevis*, 85 F.4th at 1209 (Brennan, J., dissenting); *Hanson*, 120 F.4th at 266 (Walker, J., dissenting). Of these judges, all but Niemeyer were appointed by Donald Trump. This appears to be one of the doctrinal choices fueling the major gap between Trump-appointed judges and other judges (including other Republican-appointees) in Second Amendment cases. Rebecca L. Brown, Lee Epstein, & Mitu Gulati, *Guns, Judges, and Trump*, 74 DUKE L.J. ONLINE 81, 84 (2025).

treat common use as part of step one have rejected the Second Amendment challenge before them; most (but not all) of those who treat common use as part of step two have struck down the challenged law. And as Andrew Nell points out, Democratic-appointed circuit judges have unanimously rejected Second Amendment challenges in these cases, with all but one concluding that the common use inquiry is part of *Bruen*'s step one.³⁰⁰ By contrast, “[e]leven of sixteen Republican appointees have found [assault weapon bans] or [large capacity magazine bans] unconstitutional. Those same eleven all applied common use at step two, not one. And all eleven treated the number of arms in private hands as dispositive.”³⁰¹

Those who would treat common use as part of *Bruen*'s second step would essentially remove it as a principle of Second Amendment coverage, making common use an element of protection and treating *Heller*'s capacious definition of “Arms” as providing the sole test of coverage.³⁰² And that in turn raises the matter of commonality as immunity from regulation.

C. Common Use as a Foil for Democratic Regulation

In an apparent continuation of the trend erasing “dangerousness” as a principle, some courts and commentators have argued that weapons in common use cannot be regulated at all.³⁰³ Adoption of such a test would represent a new apex in the Court's campaign against means-end scrutiny—albeit one marked by populist rhetoric.

The consequentialist objections to this approach are straightforward. It could presumably not only extend coverage to nuclear weapons and nerve gas (which fall within *Heller*'s dictionary definition of “Arms”) but forbid the government from prohibiting them. A coverage test that cannot rule out this preposterous result has clearly failed; it not only undermines democratic self-governance but fails meaningfully to reflect any plausible Second Amendment values. In his *Snope* dissent, Justice Thomas dismissed this hypothetical as a phantom menace, since it is of course unlikely that Americans will ever commonly possess nuclear devices for lawful purposes.³⁰⁴ That is a surprisingly

³⁰⁰ Nell, *supra* note 33, at 13.

³⁰¹ *Id.*

³⁰² Smith, *Dangerous, but Not Unusual*, *supra* note 35, at 603 (“Fortunately, the Supreme Court has already defined (expansively) almost every term found with that amendment's text—thus eliminating the need for lower courts to crack open Founding-era dictionaries.”).

³⁰³ See, e.g., *VanDerStok v. Garland*, 86 F.4th 179, 184 n.6 (5th Cir. 2023); *Price*, 111 F.4th at 415 (Quattlebaum, J., with Rushing, J. concurring); *id.* at 427–28 (Richardson, J., dissenting); *Hanson*, 120 F.4th at 266 (Walker, J., dissenting); *Duncan v. Bonta*, 133 F.4th 852, 860 (Bumatay, J., with Ikuta, Nelson, and VanDyke, JJ., dissenting).

³⁰⁴ *Snope v. Brown*, 145 S. Ct. 1534, 1538 (2025) (Thomas, J., dissenting from denial of cert) (“Even if some nuclear warheads are small enough for an individual to carry, no reasonable person would think to use one to defend himself. Still less could nuclear warheads ever become

consequentialist defense of a test that purports not to be consequentialist. It also misses the point of the critique, which is not that the common-use-as-immunity test struggles to resolve hard cases, but that it cannot weed out easy ones.

Imagine instead that a company develops an app that makes iPhones into weapons—explosive, say, or just capable of emitting a painful or even deadly sound. Ten million people download the app within the first day. Their phones now fall within *Heller*’s definition of arms as “[w]eapons of offence, or armour of defence” or as “any thing that a man wears for his defence, or takes into his hands, or useth in wrath to cast at or strike another,”³⁰⁵ and they are far more commonly owned than the 200,000 stun guns referenced in *Caetano*. The government cannot possibly prove that these people are not law-abiding, and of course no government has yet had a chance to ban the app. The new app thus becomes “in common use” overnight and subject to complete immunity under the Second Amendment, since “the relative dangerousness of a weapon is irrelevant when the weapon belongs to a class of arms commonly used for lawful purposes.”³⁰⁶

Treating common use as absolute immunity disables democracies from defending themselves against existential threats, let alone the daily toll of gun violence that claims tens of thousands of deaths and untold damage to public life every year. Supporters of the test, however, often recast that democratic deficit in populist terms, as Justice Thomas did in his *Snope* opinion: “Our Constitution allows the American people—not the government—to decide which weapons are useful for self-defense.”³⁰⁷ By drawing a distinction between “the American people” and “the government” and equating the former with a subset of gun owners, this approach explicitly transfers democratic legitimacy from elected representatives to the minority of Americans who own AR-15s.³⁰⁸ And thus distortions of “common use” become a basis for disabling majoritarian democracy.

CONCLUSION: THE INEVITABILITY OF CONSTITUTIONAL PRINCIPLES IN CONSTITUTIONAL COVERAGE

The common use test has become a lever that is disconnected from the machinery it is meant to operate—more of an ornament than a doctrine for

a *common* means of self-defense.”).

³⁰⁵ 554 U.S. at 581 (citing JOHNSON, *supra* note 82 and CUNNINGHAM, *supra* note 82). The difficulty of relying on 18th century dictionaries in this context should be evident, given that the authors of those dictionaries crafted their definitions without any knowledge of modern technology. Even holding aside the legal consequences, would Johnson have written a different definition had he known about hand-held nuclear devices?

³⁰⁶ *Caetano*, 577 U.S. at 420 (Alito, J., concurring).

³⁰⁷ *Snope*, 145 S. Ct. at 1537 (Thomas, J., dissenting).

³⁰⁸ Blocher & Siegel, *Ambitions of History and Tradition*, *supra* note 10.

implementing constitutional meaning.³⁰⁹ It emerged from a stray line of apparent dicta in *Miller*, which made no pretense of originalist analysis, was probably incorrect as to the bits of history it referenced, and might well have meant “common” in an entirely different sense. Having savaged *Miller* as unoriginalist and “virtually unreasoned,” *Heller* nonetheless seized on *Miller*’s reference to “common use” and repurposed it as a coverage test for “Arms,” adding a variety of non-originalist extratextual embellishments along the way. Lower courts dutifully tried to invoke this standard, while noting its unworkability (what is “common”? what is “use?” what about “dangerous” and “unusual?”), which they could generally sidestep by assuming common use and handling cases based on means-end scrutiny.

By putatively rejecting means-end scrutiny and replacing it with a focus on “plain text” and historical analogy, *Bruen* made it harder to justify modern regulations on modern terms. And yet many—including a plurality of the Justices—continue using the distinctly-contemporary common use test as an end-around to avoid *Bruen*’s otherwise exclusive focus on “plain text” and history (of which the common use test is justified by neither). Indeed, some advocates and judges have begun to treat the common use test as a rule of absolute immunity that would render any weapon, no matter how dangerous, impervious to regulation so long as it meets the as-yet-undefined standard of “in common use.” These shortcomings are all the more alarming because the Court has signaled that it will take a class-of-arms case “in the next Term or two.”³¹⁰ When it does, the Justices will have an opportunity to revisit a coverage test that has become unmoored from constitutional text, history, workability, and democratic imperatives.

It is impossible fully to articulate an alternative here, and indeed—as with every other area of constitutional law—there will not and cannot be a single rule or test for coverage. But any desirable or even functional approach must meaningfully reflect the values of the relevant constitutional right. The boundaries of the First Amendment are not, have never been, and could never be set simply by reference to 18th century dictionaries or stray lines of doctrine. They are set and constantly contested on the basis of a complex mix of doctrinal rules and social contexts that reflect the constitutional *value* of speech.³¹¹

Having so long campaigned against the transparent acknowledgement of values in judicial decision-making—the push to eliminate means-end scrutiny is an battle in that ongoing campaign—the conservative Justices might be uncomfortable openly recognizing values-based decisions. But they are already

³⁰⁹ Cf. Post, *supra* note 2, at 1249.

³¹⁰ *Snope*, 145 S. Ct. at 1534 (Kavanaugh, J., respecting the denial of certiorari).

³¹¹ Post, *supra* note 2, at 1252 (“[T]he constitutional recognition of communication as possibly protected speech also depends heavily on the social context within which this triadic relationship is situated. The threshold conditions for applying the First Amendment must thus attend to this social context.”).

part of the *Bruen* framework, even when hidden in invocations of “plain text” and history or in burden-shifting and levels of generality moves. And *Rahimi*’s recharacterization of *Bruen*’s test as being about a search for historical “principles”³¹² rather than a list of historical data points suggests that the Court is at least willing to consider the necessity of the task.

What might that mean for class-of-arms cases? The Justices have already identified what they see as the “core” interest of the right to keep and bear arms—self-defense³¹³—as well as the legitimate role of gun regulation in preserving individual and civic life. Reorienting Second Amendment coverage around those considerations might suggest, for example, that arms lacking meaningful connection to self-defense are uncovered by the right to keep and bear arms.³¹⁴ Or it might require deeper thinking about the nature and role of weaponry in facilitating violence, for good (as in cases of justified self-defense) and for ill (as in cases of criminal violence).³¹⁵ Unless and until the Court treats questions of Second Amendment coverage with the same seriousness and attention as it does other areas of constitutional rights law, the common use test will continue to provide erratic and unprincipled guidance about the boundaries of the right to keep and bear arms.

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³¹² *Rahimi*, 602 U.S. at 681.

³¹³ See generally Eric Ruben, *An Unstable Core: Self-Defense and the Second Amendment*, 108 CAL. L. REV. 63 (2020).

³¹⁴ Cf. Shira Lauren Feldman & Tess M. Fardon, *The Meaning of Lawful Self-Defense: State Criminal Law and the Scope of the Second Amendment*, 73 BUFF. L. REV. 101 (2025).

³¹⁵ See Joseph Blocher & Darrell A.H. Miller, *Cheap Violence: Weapons and the Law*, 121 NW. U. L. REV. (forthcoming 2027).